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AIR FORCE CIVILIAN DRUG DEMAND REDUCTION PROGRAM

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This Air Force Manual (AFMAN) implements Air Force Policy Directive 44-1, *Medical Operations*. It applies to all Air Force Title 5 and Title 10 employees who work on Air Force, Air National Guard and Air Force Reserve Bases; Air Reserve Technicians when in a civilian status; tentative selectees for testing designated positions (TDPs); and, to contract employees when drug testing is explicitly included in the employee's contract. This Manual does not apply to Title 32 National Guard Dual Status and Non-Dual Status Technicians who are regulated by National Guard Technician Personnel Regulations and applicable regulations promulgated by the Chief of the National Guard Bureau. The program covers full-time, part-time and intermittent Air Force Title 5 employees who are U.S. citizens paid from appropriated funds and non-appropriated funds. The Air Force Civilian Drug Testing Program assigns responsibility for carrying out the program at installation and higher Air Force levels.

This Manual requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by Title 5, United States Code (U.S.C.) 7301; 10 U.S.C. 8013; 42 U.S.C. 290dd-2, et seq.; Executive Order (EO) 11478; EO 12564; Numbering System for Federal Accounts Relating to Individual Persons, November 22, 1943 as amended by EO 13478, Amendments to EO 9397 Relating to Federal Agency Use of Social Security Numbers, November 18, 2008; DoD Instruction 1010.09; Air Force Manual (AFMAN) 44-197; and, AFI 44-121. The applicable SORN System of Records Notices F044 AF SG I, Air Force Drug Testing Program, and F044 Air Force Surgeon General, Alcohol and Drug Abuse Prevention and Treatment Program, are available at: <**http://dpcld.defense.gov/Privacy/SORNsIndex/**>. The authorities to waive wing/unit level requirements in this publication are identified with a Tier **("T-0, T-1, T-2,**

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SUMMARY OF CHANGES

References from gender marker changed to sex marker to be consistent with SAF/MR Memorandum, "Implementation of Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government," dated 4 February 2025.

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Chapter 1

PROGRAM OVERVIEW

1.1. Overview.

1.1.1. This manual establishes Air Force Civilian Drug Testing Program objectives, procedures, and implementation guidelines. The Program is designed to achieve a drug-free workplace, consistent with Executive Order 12564 and Title 5 United States Code §7301.

1.1.2. This manual includes guidance and procedures for providing assistance to employees with suspected or identified drug abuse problems, employee education and training, and the identification of illicit drug use through drug testing in conjunction with AFMAN 44-197, *Military Drug Demand Reduction Program* and AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment Program.*

1.2. General Guidance Regarding Illicit Drug Use by Civilian Personnel.

1.2.1. The Air Force, as a result of its national defense responsibilities, has a compelling obligation to eliminate illicit drug use from its workforce. Employees of the Air Force must refrain from illicit drug use on and off-duty. Performing duties under the influence of illicit drugs adversely affects safety, risks damage to government property, impairs day-to-day operations, and may expose sensitive information to compromise. Use of illicit drugs is inconsistent with the high standards necessary to accomplish the Air Force mission.

1.2.2. This guidance is based on the Federal criminal statutes on controlled substances and is not affected by any State laws legalizing use of marijuana or other controlled substances.

1.2.3. The Air Force is concerned with the well-being of its employees, the successful accomplishment of the mission, and the need to maintain high employee productivity. The intent of the Air Force is to offer assistance to those employees who need it, while sending a clear message that illicit drug use is incompatible with Federal service.

1.2.4. The performance of every employee must support the Air Force mission with the highest level of integrity, productivity, reliability, and judgment. Federal employees entrusted with the national defense must be free from the possibility of coercion or influence of criminal elements. This is especially important for employees who have been entrusted with access to classified information, or who, for instance, are responsible for weapons systems with nuclear or conventional capabilities.

1.2.5. Random drug testing, reasonable suspicion testing, accident or safety mishap testing, voluntary testing, and consent testing (includes follow-up to counseling or drug abuse treatment) will be employed to deter employees from the use of illicit drugs and to identify employees for treatment and administrative actions.

1.3. Goals of the Civilian Drug Demand Reduction Program.

1.3.1. To support and enforce Executive Order 12564 and the *Anti-Drug Abuse Act* of 1988. The program strives to improve the health, productivity, and overall quality of the civilian force and enhance total force readiness by:

1.3.1.1. Preventing, reducing, and eliminating illicit drug use.

1.3.1.2. Advising and training managers, supervisors, and employees on how best to address drug abuse issues.

1.3.1.3. Referring employees to rehabilitative services and treatment.

1.3.1.4. Restoring employees to full effectiveness.

1.3.1.5. Maintaining the health and wellness of a fit and ready workforce and drug-free Air Force community.

1.3.1.6. Deterring civilian personnel from illicit drug use.

1.3.1.7. Detecting and identifying those individuals who engage in illicit drug use.

1.3.1.8. Assisting commanders/directors in assessing the security, fitness, readiness, and good order and discipline of their commands.

1.3.1.9. Providing a basis for action, disciplinary or otherwise, based on an employee's positive test result.

1.3.1.10. Ensuring that urine specimens collected as part of the *Anti-Drug Abuse Act* of 1988 are supported by a legally defensible chain of custody procedure at the collection site, during transport, and at the testing laboratory.

1.3.1.11. Ensuring that all specimens collected under the *Anti-Drug Abuse Act* of 1988 guidelines are tested by a laboratory certified by HHS.

1.3.1.12. Ensuring that all civilian personnel recognize that the ingestion of non-prescription products that contain controlled substances (as defined by Federal law) and/or illicit ingestion of prescription products may subject the individual to a suspicion of drug abuse and thereby compromise his/her status as an Air Force employee.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. The Assistant Secretary of the Air Force for Manpower and Reserve Affairs (SAF/MR). Per Air Force Mission Directive 1-24, *Assistant Secretary of the Air Force (Manpower and Reserve Affairs)*, the SAF/MR is responsible for medical readiness and the Air Force Drug Demand Reduction Program, which includes the Air Force Civilian Drug Testing Program.

2.2. The Air Force Surgeon General (SG). Per Air Force Mission Directive 1-48, *The Air Force Surgeon General,* SG is the authority and OPR for the implementation of policy and guidance relating to drug abuse urinalysis programs for civilian personnel as delegated to the Secretary of the Air Force (SecAF) pursuant to Department of Defense Directive 1010.9, *DoD Civilian Employee Drug-Free Workplace Testing Program.* The Air Force SG ensures that the program meets the requirements of this manual and any additional requirements established by the SAF/MR, the SecAF, and Assistant Secretary of Defense for Health Affairs. Formulation, review, and execution of plans, policies, program and budgets are the responsibility of the Air Force SG.

2.3. The Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1).

2.3.1. Acts as an Office of Collateral Responsibility (OCR) for civilian drug testing, focusing on personnel policy regarding disciplinary action for appropriated fund and non-appropriated fund civilian personnel.

2.3.2. Acts as the OPR for classification of Air Force employee positions, and designation of positions as drug TDPs (**Attachment 2**). Responsible for the identification, nomination and coordination of TDPs for appropriated fund and non-appropriated fund civilian personnel to include forwarding requests to the Assistant Secretary of Defense for Health Affairs for approval.

2.3.3. Develops policies for the disciplinary action(s) against employees identified with illicit drug usage and related personnel Employee Assistance Program (EAP) issues.

2.3.4. Coordinates on the development, implementation and review of the portions of the Air Force's EAP that include education, initial assessment, and referral of substance abusers as required by the Executive Order 12564.

2.4. The Air Force Medical Review Officer (MRO). A centralized position appointed by the Director, Drug Testing and Program Policy - Office of the Under Secretary of Defense for Personnel and Readiness.

2.4.1. Receives all laboratory test results from the Air Force-designated laboratory.

2.4.2. Interprets and evaluates all drug test results with the individual's medical history and any other relevant biomedical information in accordance with HHS guidelines. Assures that an individual who has tested positive has been afforded an opportunity to provide a verifiable medical explanation for the test result.

2.4.3. Strictly complying with guidance on employee privacy, transmits written determinations regarding all MRO-verified positive and invalid test results to the base Drug Demand Reduction Program Manager (DDRPM) or Drug Testing Program Administrative Manager (DTPAM).

2.5. The Judge Advocate General

2.5.1. Assists the Air Force SG, the Deputy Chief of Staff Manpower, Personnel and Services, and Major Commands (MAJCOMs) in managing legal aspects of the Air Force Civilian Drug Testing Program.

2.5.2. Serves, in conjunction with the General Counsel, as a consultative resource in interpreting legal requirements of HHS, DoDIs, AFIs, AFMANs, and policies.

2.6. The Air Force Medical Operations Agency (Biomedical Sciences Corps (AFMOA/SGB) and Mental Health Division (AFMOA/SGH) Directorates. The AFMOA SGB and SGH Directorates exercise overall responsibility for Drug Demand Reduction (DDR) Programs, including implementation of the Air Force Drug Testing Program, and the Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program.

2.7. Air Force Drug Testing Program Manager (AFMOA/SGB).

2.7.1. Serves as the AFMOA senior technical authority, subject matter expert, and OPR for implementation of Air Force forensic specimen collection and drug testing policies, and interpretation of drug testing issues relating to civilian drug testing.

2.7.2. Develops, implements, and manages the Air Force Civilian Drug Testing Program drug testing operations to support established policies.

2.7.3. Coordinates with Office of the Under Secretary of Defense for Personnel and Readiness regarding the Air Force Civilian Drug Testing Program budget.

2.7.4. Communicates with the Executive Office of the President (Office of National Drug Control Policy), and other Federal, DoD, Air Force, State, and local civilian agencies having superior and collateral responsibilities and interests.

2.7.5. Provides implementing and operational drug testing guidance to AF MAJCOMs.

2.7.6. Develops procedures for managing and documenting drug testing activities.

2.7.7. Responds to drug testing complaints from subordinate elements, Congressional and high-level inquiries, and Freedom of Information Act requests.

2.7.8. Establishes drug testing statistical requirements and aggregates biometric data.

2.7.9. Identifies and assesses drug abuse trends and monitors quality assurance inspections of the Air Force-designated forensic drug testing laboratory. The quality assurance inspection assesses the performance of the laboratory and its adherence to HHS and DoD requirements.

2.7.10. Provides oversight for MRO functions.

2.7.11. Identifies HHS certified laboratories to conduct reasonable suspicion, post-accident or safety mishap, and/or unsafe practice drug tests for any drug not on the panel of substances routinely tested for by DoD drug testing laboratories.

2.8. The Air Force Drug Testing Collection Manager (AFMOA/SGB).

2.8.1. Serves the Air Force Drug Testing Program as the senior authority and subject matter expert for the military and civilian specimen collection segments, responsible for all aspects of specimen collection activities to the advancement of the Air Force and DoD DDR Programs.

2.8.2. Monitors testing rates to ensure that the DoD-mandated testing rate is accomplished at each installation.

2.8.3. Develops programming and execution of the Air Force Drug Testing Program budget for collection sites.

2.8.4. Ensures dissemination of statistical data for installations Air Force wide, assesses testing trends, untestable rates, and shares information with MAJCOM DDRPMs.

2.8.5. Coordinates appropriate requests for more detailed data, requesting DoD approval for Defense Manpower Data Center actions.

2.8.6. Provides operational guidance to MAJCOM DDRPMs. Develops standardized Air Force training for individuals assigned to the DDRPM/DTPAM functions.

2.8.7. Provides final approval for MAJCOM corrective actions for discrepancies.

2.8.8. Forwards all DDR Program drug testing correspondence received from higher headquarters to the MAJCOM DDRPM.

2.8.9. Provides collection training to MAJCOM DDRPMs responsible for ensuring that collection training is provided to collection site personnel.

2.8.10. Provides MAJCOM guidance for any unique collection or testing scenarios.

2.9. The MAJCOMs

2.9.1. The MAJCOM SG is the OPR for implementation of guidance over the command-level civilian drug testing program and appoints a MAJCOM DDRPM.

2.9.2. The MAJCOM DDRPM assists and serves as the primary focal point for installation-level DDRPMs/DTPAMs in administering the civilian drug testing program. MAJCOM DDRPMs will provide assistance to those installations without a DDRPM position. MAJCOMs that do not have a DDRPM at the headquarters level will determine which DDRPM within their MAJCOM will be the point of contact for installations without a local DDRPM.

2.9.3. The MAJCOM DDRPM, in conjunction with the MAJCOM SG, will ensure that each installation has a mechanism in place to provide adequate training of personnel assigned to the installation-level DDRPM/DTPAM functions. Centrally-developed, Computer-Based Training can be used if the opportunity for temporary duty (TDY) is not available. All installation DDRPMs/DTPAMs must have training to perform DDR Program duties. **(T-0).** Information and training should be tailored to fit the needs of each installation. Training materials will be updated as needed and must be reviewed and approved by the MAJCOM DDRPM prior to implementation. **(T-1).**

2.9.4. The MAJCOM DDRPM will ensure that each installation-level DDRPM/DTPAM conforms to this AFMAN. **(T-1).**

2.9.5. The MAJCOM DDRPM are responsible for monitoring testing rates for installations in their command to ensure the appropriate testing rate is accomplished at each base. **(T-1).** If an installation is not testing at the required rate, the MAJCOM DDRPM will assist in identifying a corrective action plan. **(T-1).**

2.9.6. The MAJCOM DDRPM will forward all DDR Program correspondence received from higher headquarters to the installation DDRPM/DTPAM. **(T-1).**

2.9.7. If required, the MAJCOM DDRPM coordinates reporting of civilian drug testing data from their subordinate installations. **(T-1).**

2.9.8. The MAJCOM Staff Judge Advocate (SJA) is the MAJCOM OCR assisting the Command SG, MAJCOM Director of Personnel, and MAJCOM Director of Services in managing the legal aspects of the MAJCOM Air Force Civilian Drug Testing Program.

2.10. Air Force Personnel Center (AFPC). Collects requests for adding TDPs, processes them, and provides to the Deputy Chief of Staff Manpower, Personnel and Services for coordination and authorization.

2.11. Servicing Civilian Classification Function. Ensures appropriate TDP statement is described in position descriptions under the "other Significant Facts or Conditions of Employment/Other Significant Facts area" of the position description.

2.12. The Civilian Personnel Section (CPS).

2.12.1. The CPS ensures all appropriated fund employees subject to random testing and applicants tentatively selected for TDPs receive individual notices of testing requirements prior to being assigned to their positions. **(T-0).** Advises supervisors to file a copy of the signed notice in the Supervisor's Employee Work Folder. **(T-0).** When an employee is moved from one TDP to another, reviews the employee's work folder to ensure notice has been issued, received and acknowledged by the employee. **(T-0).**

2.12.2. Ensures TDPs have appropriate statements in position descriptions/core documents and the Defense Civilian Personnel Data System are coded to identify covered positions. **(T-0).**

2.12.3. Provides accurate listing of TDPs with corresponding full names to the DDRPM/DTPAM each month. **(T-0).**

2.12.4. Upon receipt of a MRO-verified positive or invalid test result from the DRPM/DTPAM, provides results to supervisors. **(T-0).**

2.12.5. Provides the DDRPM/DTPAM statistical data relating to personnel actions as requested. **(T-1).**

2.13. The Human Resource Office (HRO).

2.13.1. Provides new Non-Appropriated Fund employees being hired into TDPs and current employees being transferred into TDPs individual notices of testing requirements prior to being assigned to their positions. (T-0).

2.13.2. Advises supervisors to file a copy of the signed notice in the Supervisor's Employee Work Folder and/or personnel file maintained by the HRO. Notices are issued for specific positions and must be reissued when an employee is moved from one TDP to another. **(T-0).**

2.13.3. Ensures TDPs have appropriate statements in position descriptions/core documents and the Defense Civilian Personnel Data System are properly coded to identify covered positions. **(T-0).**

2.13.4. Provides accurate listing of TDPs with corresponding full names to the DDRPM/DTPAM each month. **(T-0).**

2.13.5. Upon receipt of a MRO-verified positive or invalid test result from the DDRPM/DTPAM, the HRO provides action guidance to supervisors. **(T-0).**

2.13.6. If requested, provides the DDRPM/DTPAM statistical data relating to personnel actions. **(T-1).**

2.14. Installation Commander/Director.

2.14.1. Ensures the Air Force Civilian Drug Testing Program is conducted in accordance with the guidelines established in this AFMAN and the HHS *Urine Specimen Collection Handbook* for the Federal Agency Workplace Drug Testing Program. **(T-0).**

2.14.2. Ensures the installation's civilian drug testing program is adequately staffed. **(T-0).**

2.14.2.1. Appoints in writing a DDRPM, who is supervised by the installation commander/director or vice installation commander/director, or Wing Director of Staff. **(T-1).** (**Note:** Not all installations have a DDRPM. In this case they would only appoint a DTPAM).

2.14.2.2. Appoints in writing a DTPAM. **(T-1).** The DTPAM must serve for a minimum period of six (6) consecutive months. **(T-1).**

2.14.2.3. It is highly preferable that the DDRPMs/DTPAMs be permanently assigned or appointed to serve a minimum term of twelve (12) consecutive months to ensure a high level of program integrity. DDRPMs/DTPAMs are usually full-time employees dedicated to their DDR duties. The Installation Commander's appointment does not assign additional duties to the employee, but instead provides formal acknowledgement that the appointee qualifies as delineated in AFMAN 44-197, *Military Drug Demand Reduction Program*, to carry out the responsibilities and duties required of the position. Military medical personnel may also be assigned and appointed as DDRPMs/DTPAMs, and they may also perform the duties of Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program Manager.

2.14.2.4. If there is a DDRPM, they will supervise the DTPAM, otherwise the DTPAM will be supervised by the installation commander/director or vice wing commander, or Wing Director of Staff. **(T-1).**

2.14.3. ANG bases non-collocated with Air Force installations will establish an MOA with the nearest Air Force installation for support for the civilian drug testing program for Air Force Title 5 employees. **(T-1).**

2.15. Installation SJA.

2.15.1. Advises commanders/directors, supervisors, CPS/HRO, DDRPM, DTPAM, and other base officials and agencies regarding legal aspects of the drug testing program. **(T-1).**

2.15.2. Evaluates compliance with chain of custody collection and procedures under provisions stated in this manual each quarter. **(T-1).**

2.16. The Medical Treatment Facility Commander or Director, the Guard Medical Unit Commander/Director, and the Reserve Medical Unit Commander/Director.

2.16.1. Identifies services available for emergency treatment of drug and alcohol-related injury or illness that civilians incur while on duty. **(T-0).**

2.16.2. Identifies services available for drug abuse detoxification on an emergency inpatient basis. **(T-0).**

2.16.3. Ensures employees are referred to the EAP for other drug treatment and rehabilitation on an outpatient basis as indicated. **(T-0).**

Ensures employees are referred to EAP for medical counseling if medically required and authorized. **(T-0).**

2.16.4. Establishes procedures in order to obtain third party collection of Defense Health Program sponsored space available Alcohol and Drug Abuse Prevention and Treatment services, if provided. **(T-0).**

2.17. The Alcohol and Drug Abuse Prevention and Treatment Program Manager.

2.17.1. Chairs the Civilian Rehabilitation Team. **(T-1).**

2.17.2. Assists the Integrated Delivery Systems (or equivalent at joint bases) in providing information to unit commanders/directors, first sergeants, and supervisors on the, and training supervisors in the recognition, documentation, and referral of employees suspected of drug abuse (Training can be provided by Computer Based Training). **(T-1).**

2.17.3. Refers supervisors of employees identified with performance and/or personal problems that may be related to illicit drug use or prescription drug abuse to HR. **(T-1).**

2.17.4. Establishes a mechanism for initial substance abuse evaluation of all employees referred by their supervisors, self-referred, or identified through positive drug testing, and offers employees the opportunity for substance abuse counseling and treatment through referral agencies. **(T-1).** Initial assessment and referral services will be provided at no cost to the employee by the EAP, the ADAPT clinic, or equivalent. **(T-1).** Referral agencies may include any provider for which the employee has eligibility, which may include community services under Federal Employee Health Benefits Program or services provided on a reimbursable basis according to HHS/TRICARE guidelines. When making referrals, consideration should be given to such factors as cost, insurance coverage, location, scheduling, etc.

2.17.5. Ensures confidentiality of initial assessment and referral information. **(T-1).**

2.17.6. Maintains a list of rehabilitation or treatment organizations which provide counseling and treatment programs, and includes the following information on such organizations: **(T-1).**

2.17.6.1. Name, address, and phone number.

2.17.6.2. Types of services provided.

2.17.6.3. Hours of operation, including emergency hours.

2.17.6.4. A contact person(s) name(s) and phone number(s).

2.17.6.5. Client specialization.

2.17.6.6. Other pertinent information.

2.17.7. If seen at an ADAPT facility, documents and signs the referral plan for all employees referred for treatment. **(T-1).**

2.17.8. If seen at an ADAPT facility, the employee is informed that all disclosures must be made in accordance with AFI 41-200, *Health Insurance Portability and Accountability Act (HIPAA)*. ADAPT staff also advise the employee, both orally and in writing (see sample letter, **Attachment 13**) of the available options for counseling and/or rehabilitation services and the requirement to provide evidence to the supervisor that such services have been obtained in accordance with Executive Order 12564. **(T-0).** Also explains the option and benefit of the employee signing a statement authorizing the release of information regarding counseling and/or rehabilitation. **(T-0).**

2.17.9. Acceptable evidence of treatment consists of a statement from the treatment provider indicating that the employee is receiving counseling and/or rehabilitation for the specific substance identified in the drug test. Failure to provide this minimum documentation may result in removal from Federal service for failing to obtain treatment. **(T-0).**

2.17.10. The employee will also be advised that he/she is not required to authorize release of confidential information regarding counseling and/or rehabilitation such as treatment plans or progress reports, unless in accordance with AFI 41-200, *Health Insurance Portability and Accountability Act (HIPAA)*. **(T-1).** All information released to the supervisor may be considered in the determination of appropriate disciplinary action and employment decisions. Contact the servicing HR if the employee requests union representation. **(T-0).**

2.17.11. The employee should be referred to his/her supervisor. Employees seeking information on possible administrative consequences due to substance abuse will be referred to the base HR. **(T-0).**

2.17.12. If seen at an ADAPT clinic, documents evaluation and referral activities in medical and ADAPT clinic records. **(T-1).** Ensures medical and ADAPT records of civilian personnel referred for assessment and/or treatment include: referral data, pertinent confidentiality and release of information, assessment data, diagnostic formulation, patient decision to accept or refuse treatment, appropriate treatment planning, case management or clinical services provided, and summary of status on termination, if appropriate. **(T-0).**

2.18. The DDRPM/DTPAM.

2.18.1. Is responsible for all drug testing technical aspects of the Air Force Civilian Drug Testing Program under the direct supervision of the installation commander/director or his/her designee. **(T-1).** The DDRPM/DTPAM is not responsible for clinical evaluation or referral aspects. These functions will be performed by EAP services or ADAPT. **(T-1).** The DDRPM/DTPAM may be military or civilian personnel and the same person can perform both duties.

2.18.2. Acts as the focal point for base level Air Force Civilian Drug Testing Program drug testing issues. **(T-1).** Coordinates drug testing activities with the HR and the Installation SJA. **(T-1).**

2.18.3. Must meet the same job qualification requirements as delineated in AFMAN 44-197, *Military Drug Demand Reduction Program*. **(T-1).** DDRPMs and DTPAMs will have received training in collecting urine specimens in accordance with HHS Mandatory Guidelines for Federal Workplace Drug Testing Programs. **(T-0).** DDRPMs must successfully complete an AFMOA approved "train the trainer" course given by AFMOA or an approved organization (for example, MAJCOM DDRPM, manufacturer, private entity, contractor, or federal agency) **(T-1).** Once the DDRPM has gained 12 months of sample collection experience, they should become a certified trainer within 3 months, at which time the DDRPM will be responsible for ensuring that the DTPAMs are adequately trained, and competent to perform their duties. **(T-1).**

2.18.4. Assists the Integrated Delivery System (or equivalent at joint bases) or ADAPT Program Manager in providing information to unit commanders/directors, first sergeants, and supervisors on the Air Force Civilian Drug Testing Program, and training supervisors in the recognition, documentation, and referral of employees suspected of drug abuse. **(T-1).** Training can be conducted by Computer Based Training.

2.18.5. Coordinates with squadron commanders/directors or their equivalent and Air Force ADAPT Program Manager to ensure supervisors are trained to recognize and address illicit drug use by employees. **(T-1).** Training will include: behavioral and performance patterns warranting referral for evaluation, procedures for referring employees for initial assessment, and the basis for, as well as the requirements of, the drug testing program. **(T-1).** Training can be conducted by computer based training.

2.18.6. Manages outreach activities as part of the overall Air Force Civilian Drug Testing Program for employees and their supervisors, and provides Air Force Civilian Drug Testing Program materials to supervisors. **(T-1).**

2.18.7. Ensures at least annually that all aspects of the Air Force Civilian Drug Testing Program comply with guidelines described in DoD and Air Force directives, instructions, and the HHS *Urine Specimen Collection Handbook*. **(T-1).**

2.18.8. Safeguards sensitive medical information that testing may generate in accordance with AFI 33-332, *Air Force Privacy Act Program*. **(T-1).**

2.18.9. Verifies results are received for every specimen sent for testing, tracks outstanding results, and coordinates follow-up with the testing laboratory to resolve issues regarding turnaround times, outstanding results, and untestable specimens. **(T-1).**

2.18.10. Ensures timely notification, in writing, to the CPS or HRO, the employee's supervisor, Installation SJA, and the employee's commander/director of all MRO-verified positives and substituted or adulterated results. **(T-0).**

2.18.11. Maintains and provides appropriate drug testing statistical data as requested by the MAJCOM DDRPM. **(T-1).**

2.18.12. Consults with Air Force Drug Testing Program Manager to identify HHS-certified laboratories to conduct drug testing for a substance not routinely tested for by a DoD drug testing laboratory. **(T-1).**

2.19. Civilian Rehabilitation Team.

2.19.1. When requested by an employee, a rehabilitation team will convene to provide advice and assistance to supervisors and/or employees to facilitate counseling and/or rehabilitation efforts. **(T-0).** Disclosure of the treatment plan by the ADAPT team to the supervisor requires an accounting of disclosure in accordance with AFI 41-200, *Health Insurance Portability and Accountability Act (HIPAA)*. During the course of counseling/rehabilitation, underlying issues may be identified (for example, financial or family conflicts) as well as problems in the work setting. Although the employee is ultimately responsible for his/her rehabilitation, the team may review the facts and make recommendations to the supervisor and/or employee. Such recommendations may include additional referrals (for example, financial or family counseling, job training, work scheduling, reassignment and/or retirement options). When the employee has consented, in writing, to the release of confidential treatment information, the supervisor may request the team's advice on the appropriateness of a treatment plan as well as whether the employee is making reasonable progress. **(T-1).**

2.19.2. The team consists of representatives of the ADAPT program, the CPS or HRO representative, the individual's supervisor, and other base agencies, as deemed appropriate. **(T-1).** Air National Guard Directors of Psychological Health will provide information about the nearest or host Air Force installation regarding the Civilian Rehabilitation Team **(T-1).**.

2.19.3. Regardless of the referral and/or treatment options chosen, the employee remains solely responsible for his or her behavior. **(T-0).**

2.20. Unit Commander/Director.

2.20.1. Ensures all employees are provided substance abuse awareness education and training per this manual from either downloaded computer based training or live training during new employee orientation. **(T-1).** The Education and Training Flight or Unit Training Manager should be involved in the process of meeting the requirements of this paragraph. Air National Guard DDRPMs will provide drug education per this manual. **(T-1).**

2.20.2. Will appoint a Trusted Agent that is a member of the Commander's Support Staff or director's Commander's Support Staff equivalent. **(T-1).** If the commander/director does not have a Commander's Support Staff or director's Commander's Support Staff equivalent, the commander/director must identify and appoint a Trusted Agent in writing. **(T-1).** The Trusted Agent will:

2.20.2.1. Receive and maintain rosters of individuals selected for urinalysis testing. **(T-1).**

2.20.2.2. Ensure supervisors notify individuals selected for urinalysis testing no earlier than one hour prior to the scheduled starting collection time and no later than one hour prior to the scheduled end of collection time. **(T-1).** For Geographically Separated Unit (GSU) members, the one-hour period may be extended by the commander/director.

2.20.2.3. Ensure the return of notification letters (**Attachment 7**) to the DDRPM/DTPAM with annotations of those members/employees notified; those not notified; and/or those on leave, TDY, quarters, crew rest, or flying status (with return dates) by the time specified by the DDRPM/DTPAM. **(T-1).**

2.20.2.4. Ensure individuals who have submitted urine specimens which are determined to be invalid by the drug testing lab are retested and their new urine specimens submitted to the drug testing laboratory for testing. **(T-1).**

2.20.2.5. Possess unquestionable integrity and trustworthiness, and meet the following criteria:

2.20.2.5.1. No Unfavorable Information File (AFI 36-2907, *Unfavorable Information File Program*). **(T-1).** (Applies to military members only. Air National Guard will follow guidance from AFI 36-2907, Table 2.1, for those who are authorized to have an Unfavorable Information File).

2.20.2.5.2. No recent record (within five years) of conviction by courts-martial or civilian criminal court for matters involving dishonesty, fraud, or drug abuse. Additionally, individuals are ineligible if they have a record of conviction by courts-martial or civilian court or have received non-judicial punishment under Article 15, *Uniform Code of Military Justice* (or, for ANG members, similar disciplinary action under the relevant State's code), or a Letter of Reprimand or similar administrative action (Letter of Admonishment, Letter of Counseling) for misconduct involving dishonesty, fraud, or drug abuse (including use, possession, or distribution). This also applies to pending adjudications for allegations of misconduct. Prior to assigning an individual to serve as a Trusted Agent, the unit commander/director will review the individual's Personnel Information File or equivalent personnel record. Normally, misconduct, including drug abuse that occurred prior to entering active duty service in the Air Force or that occurred prior to the person's appointment as a Title 5 employee should not be considered a bar to service as a Trusted Agent.

2.20.2.5.2.1. Commanders/directors, on a case-by-case basis, make determinations as to whether or not conduct is/was dishonest and/or fraudulent, and may make exceptions. Commanders/directors will receive advice from the servicing SJA in situations in which it is unclear as to whether past misconduct is disqualifying.

2.20.2.5.2.2. No medical or mental health conditions that will prevent them from performing their assigned duties as a Trusted Agent.

2.21. Supervisor.

2.21.1. Receives and maintains notifications of individual(s) selected for urinalysis testing. **Attachment 4** is maintained indefinitely in the employee's official personnel file. **(T-1).** Attachment **4, 5 and 6** are maintained in the supervisor's employee work folder, **Attachment 7** is maintained in the supervisor's employee work folder for 90 days if the test result is negative. If the test result is positive, **Attachment 7** is maintained for 2 years. **(T-1).**

2.21.2. Endorses notification to the employee and directs the individual selected for urinalysis testing to comply with the testing requirements. **(T-1).** Provides proper initial notification to the employee. **(T-1).**

2.21.3. If the individual(s) selected for testing is/are not available, the lowest level supervisor available annotates a copy of the notification letter with an indication of the individual(s)'s status (leave, TDY, non-duty day) and forwards the status and return to duty date back to the DDRPM. **(T-1).** If determined necessary, the DDRPM may require the notification letter be forwarded to the second level or higher supervisor verifying the individual(s)'s status and returns a copy of the notification letter to the DDRPM/DTPAM with annotations indicating the individual(s) is/are in the following status: leave, TDY, non-duty day. **(T-1).**

2.21.4. Ensures written notifications for individuals selected for testing under the Air Force Civilian Drug Testing Program are appropriately acknowledged (date and time of acknowledgment, as well as the individual's signature are evident) and a copy of such notification is maintained as applicable in either the Supervisor's Employee Work Folder or the non-appropriated fund employee's Official Personnel Folder (Standard Form 66), for 90 days or until no longer needed to support follow on actions. **(T-1).** If an employee refuses to sign the supervisor annotates a copy of the notification letter with "employee refuses to sign," and forwards to the DDRPM/DTPAM. **(T-1).** The supervisor then coordinates with the Chain of Command and HR to determine appropriate administrative or disciplinary action. **(T-1).**

2.21.5. Verifies all individuals selected for testing report to the collection site within the designated collection time. Specimen collection is to be conducted on the day of selection. **(T-1).**

2.21.6. Coordinates with the CPS or HRO for appropriate action on employees who fail to report for testing or refuse to sign the notification letter. **(T-1).**

2.21.7. Except as locally modified to suit specific program responsibilities, first-line supervisors will:

2.21.7.1. Attend a training session on illicit drug use in the workplace. **(T-1).**

2.21.7.2. As indicated, request a reasonable suspicion test after first making appropriate factual observations, documenting those observations, and obtaining concurrence from the CPS or HRO. **(T-1).**

2.21.8. In coordination with the CPS or HRO, refers employees for assessment and referral following a finding of illicit drug use. Assessment and referral services are provided through the EAP, if available, or the ADAPT clinic, if an EAP is unavailable. **(T-0).**

2.21.9. Initiates appropriate disciplinary action, in coordination with the CPS or HRO, concerning all actions involving the Air Force Civilian Drug Testing Program. **(T-0).**

2.21.10. Ensures TDPs have appropriate statements on position descriptions. **(T-0).**

2.22. Employee.

2.22.1. Air Force personnel should report to the command actual or suspected illicit drug use or related criminal activity occurring on or off the base, and directed toward, or potentially harmful to, persons or property. This activity includes using, buying, possessing, stealing, transferring, selling, smuggling, making illicit drugs, or committing a crime to support a drug habit. **(T-1).**

2.22.2. On notification of selection to provide a specimen, acknowledges receipt of the notification by endorsing with his or her signature. **(T-0).**

2.22.3. Following acknowledgment of the receipt of notification, reports to the testing site within the established testing time. **(T-0).** The employee is responsible for ensuring that he or she has in his or her possession current photo identification card and the written notification signed by both the supervisor and the individual. **(T-0).**

2.22.4. An appropriated fund employee who fails to comply with the requirement to provide a urine specimen, who alters or attempts to alter or solicits another to alter a specimen, or who provides a urine specimen which indicates illicit drug use, is subject to disciplinary action in accordance with AFI 36-704, *Discipline and Adverse Actions.* **(T-1).** An appropriated fund employee, who fails to comply with conditions of employment as established by HR with specific requirements delineated in a last chance agreement and/or conditions defined by the Civilian Rehabilitation Team, is subject to disciplinary action in accordance with AFI 36-704, *Discipline and Adverse Actions*. **(T-1).**

2.22.5. A non-appropriated fund employee who fails to comply with the requirement to provide a urine specimen, who alters or attempts to alter or solicits another to alter a specimen, or who provides a specimen which reports positive for one or more illicit substances, is subject to disciplinary action in accordance with AFMAN 34-310, *Non-appropriated Fund Personnel Program Management and Administration Procedures,* and the local bargaining unit contract, if applicable. **(T-1).** A non-appropriated fund employee, who fails to comply with conditions of employment as established by HR with specific requirements delineated in a last chance agreement and/or conditions defined by the Civilian Rehabilitation Team, is subject to disciplinary action in accordance with AFMAN 34-310, *Non-appropriated Fund Personnel Management and Administration Procedures*, and the local bargaining unit contract, if applicable. **(T-1).**

2.22.6. Will remain at the collection site until a specimen is provided via either normal collection or insufficient specimen collection procedures. **(T-0).** If the time needed exceeds the employee's duty day, the DDRPM/DTPAM will follow pre-established local policies/procedures for extending the duty day. **(T-1).** An employee's inability to produce an adequate sample within a reasonable period of time (see **paragraph 3.4.10.**) may be viewed as refusal to submit to a urinalysis and the employee may be subject to disciplinary action in accordance with AFI 36-704 unless the employee can provide a medical reason for this/her inability to provide a sample. **(T-1).** Disciplinary action may result in removal from Federal service. **(T-1).**

2.23. Integrated Delivery System. Provides initial and annual education and training to first sergeants, commanders/directors, supervisors, and employees, on types and effects of drugs, symptoms of drug use and its impact on performance and conduct, and related treatment, rehabilitation, and confidentiality issues. **(T-1).** Training will include: behavioral and performance patterns warranting referral for evaluation, procedures for referring employees for initial assessment, and the requirements of the drug testing program. **(T-1).** Training can be conducted by computer based training. **(T-1).**

2.24. Drug Testing Laboratory. The Responsible Person of the drug testing laboratory ensures specimens are tested and managed according to the Memorandum of Agreement between AFMOA and United States Army Fort Meade Forensic Toxicology Drug Testing Laboratory, North Atlantic Regional Medical Command. **(T-0).**

2.25. Employee Unions.

2.25.1. Management and the Unions both recognize the importance of a drug free workplace for safety and health reasons. Employees who voluntarily seek assistance with substance abuse issues may not be under threat of disciplinary action if they adhere to the requirements of the "Safe Haven" criteria in accordance with **paragraph 5.3. (T-1).**

2.25.2. Regardless of referral and/or treatment options chosen, the employee remains solely responsible for his or her behavior. Employees may be subject to disciplinary action based on the severity of their illicit drug use or prescription drug abuse.

Chapter 3

GUIDANCE AND PROCEDURES

3.1. Applicability and Types of Testing.

3.1.1. All specimens will be tested for evidence of consumption of drugs approved by HHS for testing on an agency-wide basis. **(T-0).** Drugs that are not on the panel of substances routinely tested for will be tested as requested on the chain of custody document with prior approval of AFMOA/SGB. **(T-1).** Prior to initiating reasonable suspicion testing, supervisors must receive the advice of the servicing installation SJA and servicing CPS or HRO. **(T-1).**

3.1.2. When conducting reasonable suspicion or mishap-related testing, the Air Force may have a urine specimen tested for any drug listed in Schedule I or II of the *Controlled Substance Act*. Decisions regarding testing for use of Schedule I or II controlled substances shall be made based on adequate evidence by the employee's second level supervisor, after consultation with the servicing installation SJA and Civilian Personnel/HRO. **(T-1).**

3.1.3. Tentative Selectee Testing.

3.1.3.1. Includes all external applicants tentatively selected for assignment to TDPs covered positions and current employees in a non-TDP tentatively selected for a TDP. For tentative selectees located within reasonable travel distance of the employing activity, a urine specimen for drug testing must be collected within 48 hours after the applicant accepts a tentative offer of employment and prior to actual appointment. **(T-1).** Tentative selectees currently in a TDP within the Federal or military services will not be required to take a drug test prior to moving to a new TDP. **(T-1).**

3.1.3.2. For tentative selectees who reside more than two hours from the employing activity, or where specimens cannot be scheduled for collection within 48 hours, a urine specimen for drug testing must be collected prior to the effective date of the appointment. **(T-3).** Commanders/directors (T-3 waiver), under any circumstance, are authorized to delay the collection of a urine specimen for drug testing for up to three duty days after an employee's entry on duty into a testing designated position, where the delay is consistent with mission needs. To further assist in expediting the hiring process, a central DoD contract to have urine specimens collected at an approved alternate site may be used when prospective employees reside more than two hours from an employing activity. Scheduling to have specimens collected using the DoD contract can be arranged after an account has been created through coordination with AFMOA/SGB.

3.1.3.3. Selectees that start employment prior to providing a urine specimen for tentative selectee testing will be notified that continued employment in the position is contingent upon the receipt of notification that the specimen provided after starting employment did not reveal evidence of illicit drug use, and action may be taken to remove the employee if a specimen reveals evidence of illicit drug use. **(T-1).**

3.1.3.4. Vacancy announcements must contain a statement informing applicants that drug testing is a condition of employment. **(T-0).** If vacancy announcements are not used, tentative selectees must be informed prior to finalizing the selection, and a written record of the notification must be maintained by the CPS or HRO and/or supervisor. **(T-0).** In addition, each tentative selectee will be notified that appointment to the position will be contingent upon the receipt of notification that the specimen did not reveal evidence of illicit drug use. **(T-0).** Tentative selectees will also be given the opportunity prior to the urine test to provide medical documentation detailing authorized prescription medication they are taking. Additionally, if a laboratory verified positive test result is received, the tentative selectee will be given an opportunity to submit medical documentation to the MRO to support legitimate use of prescription drugs prior to the validation of the test results.

3.1.3.5. The Air Force will decline to extend a final offer of employment to any tentative selectee if a MRO-verified positive test result for illicit drugs is received prior to their employment start date. This action may be initiated to bar such person from future employment with the agency under procedures specified in the Office of Personnel Management Regulations. **(T-1).** Air Force objections to preference eligibles that are based on the results of a MRO-verified positive pre-employment drug screen are considered medical disqualifications or passovers. These objections are referred to the Office of Personnel Management for adjudication. They SHOULD NOT be processed as suitability cases. **(T-1).** The CPS or HRO will notify the applicant that the employment is denied on the basis of failure to pass the drug testing requirement. **(T-1).** For those appropriated fund employees tested after appointment, procedures in AFI 36-704, *Discipline and Adverse Actions* or applicable procedures for termination of probationers, must be used to take appropriate action. **(T-1).** Supervisors should work with the CPS (specifically, the servicing Employee Relations Specialist) to determine proper course of action when a specimen reveals evidence of illicit drug use or the employee refuses to provide a urine specimen as requested. For non-appropriated fund employees tested after appointment, procedures in AFMAN 34-310, *Non-appropriated Fund Personnel Management and Administration Procedures*, must be used to take appropriate administrative action. **(T-1).** The provisions pertaining to rehabilitation do not apply since employment is conditional on satisfactory completion of a drug test. **(T-1).**

3.1.3.6. Notification of Tentative Selectees.

3.1.3.6.1. Applicants being considered for positions designated as TDPs will read and acknowledge notice that a condition of employment shall be the participation in random drug testing. (See **Attachment 16**). **(T-1).** Upon final selection, the notice will be filed in the official personnel folder (Standard Form 66) and a copy may also be filed in the Supervisor's Employee Work Folder for appropriated fund employees or equivalent for non-appropriated fund employees. **(T-1).**

3.1.3.6.2. Applicants will be provided specific notice as to when and where to report for actual testing. **(T-1).** For post-appointment testing, the sample notice at **Attachment 7** may be used. For pre-appointment testing, an individual notice should be prepared to include information as to how to access the collection site including phone numbers and any instructions appropriate to someone unfamiliar with the installation.

3.1.4. Random Testing.

3.1.4.1. The Air Force will randomly test employees in positions that have been identified by Civilian Personnel as TDPs. **(T-0).**

3.1.4.2. Individuals whose specimen is MRO-verified as positive for the presence of an illicit drug without legitimate reason will immediately be temporarily reassigned and denied access to classified information. **(T-0).** The employee must be removed from the TDP. **(T-0).** However, following consultation with the Installation SJA and CPS or HRO, the squadron commander/director equivalent or higher may, in his/her discretion, and as part of an employee rehabilitation program, allow an employee to return to duty in a sensitive position if the employee's return would not endanger public health, safety or national security. **(T-0).**

3.1.4.3. The Air Force will randomly test employees at a minimum rate consistent with guidelines established by the Assistant Secretary of Defense for Health Affairs, and stated in DoDI 1010.09, *Civilian Employee Drug Testing Program,* 22 June 2012. **(T-0).**

3.1.4.4. Frequency of testing will be no less than two days per month. **(T-1).** Selection of test days will be randomized through use of DoD-approved drug testing software. **(T-1).** The DDRPM/DTPAM must generate a random list at least 8 days a month. **(T-1).** Exemptions from the use of this software must be approved by AFMOA/SGB. **(T-1).** Frequency of random drug testing must conform to levels established by the DoD and Air Force and must be based on a percentage of the TDPs end strength. **(T-1).** Installations with less than 24 TDPs may test less than two days per month as long as randomization and 50 percent Fiscal Year (FY) requirement is met. **(T-1).**

3.1.4.5. The DDRPM and DTPAM will ensure that the names selected under random selection, as well as the times and date(s) of the testing, are closely guarded to ensure confidentiality until the actual testing date(s). **(T-0).** Specimen collection is to be conducted on the day of employee notification. **(T-0).**

3.1.4.6. The DDRPM/DTPAM will notify the employee's commander/director or the commander/director's appointed Trusted Agent, who in turn will notify the employee's immediate supervisor. **(T-1).** The supervisor will notify the employee in writing of the requirement to provide a urine specimen. **(T-0).** A sample notification letter is provided at **Attachment 7**.

3.1.4.7. The supervisor will notify the employee of the requirement to provide a urine specimen within two hours of the time of notification. **(T-0).** Notification must occur on the same day the specimen collection is scheduled, and no earlier than one hour prior to the scheduled collection start time. **(T-1).** The supervisor will explain to the employee that the employee's name was selected randomly for urinalysis testing. **(T-1).**

3.1.4.8. If the individual(s) selected for testing is/are not available, the lowest level supervisor available annotates a copy of the notification letter with an indication of the individual(s)'s status (leave, TDY, non-duty day) and forwards the status and return to duty date back to the DDRPM/DTPAM. **(T-1).** The DDRPM/DTPAM may require the notification letter be forwarded to the second level or higher supervisor to verify the individual(s)'s status. The appropriate supervisor returns a copy of the notification letter to the DDRPM/DTPAM with annotations indicating the individual(s) is in leave status, TDY, or non-duty day. **(T-1).** The DDRPM/DTPAM enters the employee's return date in the random drug testing software program and sends another selection notification on the first scheduled testing day after the employee returns to duty. **(T-1).**

3.1.4.9. Occasionally, selection and notification for collection of a urine specimen comes at a time when an employee is engaged in a mission critical task. Commanders or directorate directors may defer notification of selection until selected employees are no longer engaged in mission critical functions. For employees who are improperly deferred, the DDRPM/DTPAM should report the inappropriate deferral to the commander/director of the individual who made the improper deferment for appropriate action.

3.1.4.10. Supervisors may defer testing for employees on leave, TDY, or non-duty day on the day of testing, but the first-level supervisor must ensure the employee is tested on the first selection day after they return to duty. **(T-1).** An employee whose random drug test is deferred will be subject to urine specimen collection on the next selection day within two hour of his/her notification. **(T-1).** The employee will not be notified of his/her selection for urine specimen collection until after his/her return to duty. **(T-1).** The supervisor of an employee whose collection has been deferred will coordinate with DDRPM/DTPAM prior to notifying an individual selected for testing. **(T-1).**

3.1.4.11. The DDRPM/DTPAM, after consulting with the Civilian personnel/HRO, will establish procedures for the testing of GSU employees, employees who work off-peak shifts (in other words, alternate duty schedules), and other unique situations not covered above. **(T-1).** The DDRPM/DTPAM, after consulting with the Civilian Personnel/HRO, will establish procedures (when necessary) for the testing of GSU employees to include coordination as necessary with the DDRPM/DTPAM at another location to arrange for testing of employees who work at off-site duty locations. **(T-1).** The DDRPM/DTPAM at the other location will accommodate testing in accordance with the provisions of this manual to maintain the integrity of the Air Force Civilian Drug Testing Program.

3.1.5. Reasonable Suspicion Testing.

3.1.5.1. Reasonable suspicion is a specific and fact-based belief that an employee has engaged in illicit drug use, and that evidence of illicit drug use is presently in the employee's body, drawn from specific and particularized facts, and reasonable inferences from those facts. Employees in TDP may be tested on a reasonable suspicion of illicit drug use on or off duty. Employees in non-TDP may be tested on a reasonable suspicion of on-duty drug use or impairment. If an employee is suspected of illicit drug use or in possession of drug paraphernalia, the appropriate supervisor will gather all information, facts, and circumstances leading to, and supporting this suspicion, then refer the employee to the DDR Program office for testing. **(T-1).** Reasonable suspicion may be based on, but is not limited to, the following criteria:

3.1.5.1.1. Direct observation of illicit drug use or possession and/or physical symptoms of being under the influence of a controlled substance. Physical symptoms are based on the behavior, speech, appearance, and/or body odors of the employee.

3.1.5.1.2. A pattern of abnormal conduct or erratic behavior consistent with the use of illicit drugs where no other rational explanation or reason for the conduct is readily apparent.

3.1.5.1.3. Evidence of drug-related impairment supported by hearsay from identified or unidentified sources supported by corroboration from a manager or supervisor with training and experience in the evaluation of drug-induced job impairment.

3.1.5.1.4. Recent arrest or conviction for a drug-related offense, or the identification of an employee as the focus of a criminal investigation into illicit drug possession, use or trafficking.

3.1.5.1.5. Information of illicit drug use provided either by reliable and credible sources or independently corroborated.

3.1.5.1.6. Evidence the employee has tampered with or avoided a recent or current drug test.

3.1.5.2. A supervisor in the employee's chain makes the determination, after coordination with the installation SJA, as to whether reasonable suspicion exists in any given case. **(T-1).** The supervisor will prepare a written memorandum in a timely manner to include, at a minimum, the appropriate dates and times of reported drug-related incidents, the reliable/credible sources of information considered (in other words, the rationale leading to the test). **(T-1).** The supervisor's determination that a reasonable suspicion urinalysis is warranted must be coordinated with a higher level supervisor within the functional chain of supervision, the CPS or HRO, and an attorney from the servicing installation SJA office. **(T-1).** Once complete, the written memorandum supporting the reasonable suspicion urinalysis will be maintained by the DDR Program office for at least two years. **(T-1).**

3.1.5.3. The supervisor will notify the employee in writing of the requirement to provide a urine specimen. **(T-1).** The notice to the employee will specify that the basis for the test is reasonable suspicion of illicit drug use. Include the requirement to provide the urine specimen. **(T-1).** A sample notification letter is provided at **Attachment 6**.

3.1.5.4. In the event the reasonable suspicion is for a drug not on the panel of substances routinely tested for:

3.1.5.4.1. The DDRPM/DTPAM will notify the Air Force Drug Testing Program Manager of the proposed reasonable suspicion test. If after hours or time sensitive, the specimen can be collected and then contact the Air Force Drug Testing Program Manager made at the first opportunity. **(T-1).**

3.1.5.4.2. The Air Force Drug Testing Program Manager will review the case and determine if special testing is warranted. If special testing is warranted, the Air Force Drug Testing Program Manager will assist the DDRPM/DTPAM in locating a HHS-certified laboratory capable of testing for the drug(s). **(T-1).**

3.1.5.4.3. The DDRPM/DTPAM will coordinate with the identified laboratory on shipping and payment procedures. Payment is the responsibility of the requesting unit.

3.1.6. Safety Mishap Testing.

3.1.6.1. For all mishaps defined as Class A, B, or nuclear by AFI 91-204, *Safety Investigations and Reports*, employees will be subject to testing for evidence of illicit drug use if the employee's supervisor reasonably concludes an employee's conduct may have caused or contributed to the mishap. **(T-1).**

3.1.6.2. Employees may also be subject to testing when, based upon the circumstances of the accident, their actions are reasonably suspected of having caused or contributed to an accident that meets the following criteria per DoDI 1010.09, *DoD Civilian Employee Drug-Free Workplace Testing Program:*

3.1.6.2.1. The accident results in a death or personal injury requiring immediate hospitalization.

3.1.6.2.2. The accident results in damage to government or private property estimated to be in excess of $10,000.

3.1.6.3. Supervisors should consult organizational personnel, medical, legal, and safety experts in making a determination regarding mishap testing of employees. A supervisor in the employee's chain of command will gather all information, facts, and circumstances leading to and supporting this determination, then refer the employee to the DDR Program office for testing. **(T-1).** The appropriate supervisor will promptly detail for the record how the circumstances meet the criteria warranting testing. **(T-1).** A written memorandum will be prepared to include, at a minimum, the appropriate dates and times of the mishap, mishap classification, and the reliable/credible sources of information, leading to the conclusion that the employee's conduct may have caused or contributed to the mishap. **(T-1).** This determination will be coordinated with a higher level supervisor in the functional chain of supervision, the CPS or HRO, and an attorney from the Labor/Law SJA's office. **(T-1).** The supervisor and collection site personnel will coordinate urine specimen collection with appropriate Safety personnel. **(T-1).** The supervisor will notify the employee in writing of the requirement to provide a urine specimen. **(T-1).** The notice to the employee will specify that it is a safety/mishap-related drug test. **(T-1).** A sample notification is provide in **Attachment 5**.

3.1.7. Rehabilitation (Follow-up) Testing.

3.1.7.1. All employees referred for counseling or treatment for illicit drug use will be subject to unannounced testing for a minimum of one year from the time of initiated rehabilitation services. **(T-1).**

3.1.7.2. Frequency and duration of testing will be determined by the Civilian Rehabilitation Team or as stipulated in an abeyance (last chance) agreement. **(T-1).**

3.1.8. Consent Testing.

3.1.8.1. After consultation with the installation SJA, a supervisor may ask any employee to consent to provide a urine specimen for drug testing at any time. The consent must be knowing and voluntary. **(T-1).** An employee who consents to providing a urine specimen whose specimen tests positive for an illicit drug without a legitimate medical reason is not exempt from disciplinary actions as defined in the "Safe Haven" provision in **paragraph 5.3.** **(T-1).**

3.1.8.2. Whether collection of the specimen will be by direct observation will depend upon consent of the employee. **(T-1).** A sample consent letter for obtaining a consent urinalysis is provided in **Attachment 15**.

3.1.8.3. Consent testing must be annotated on the chain of custody form in step 1 under "Other." **(T-0).**

3.2. Designation of TDPs.

3.2.1. **Attachment 2** lists TDPs subject to random drug testing. These positions involve work that impacts national security, public health and safety, protection of life and property, or otherwise require a high degree of trust and confidence. **(T-0).**

3.2.2. The Air Force reserves the right to add and/or delete categories and types of positions in **Attachment 2** based on applicable law and policy. **(T-1).**

3.3. Notice to Current Employees.

3.3.1. The Civilian Personnel/HRO must ensure all employees receive written notice when assigned to a TDP. **(T-0).** This notice is normally provided upon the selection or entrance on duty. For those employees who do not have a notice on file, one must be provided. **(T-0).** An employee whose position is newly designated as a TDP, or who moves from a non-TDP to a TDP, must be provided the appropriate notice specifically identifying the position to which he/she is being assigned. **(T-0).** For employees transferring from one TDP to another TDP, HR shall ensure notice is maintained on file and re-issue notice if it cannot be located. **(T-1).**

3.3.2. The CPS or HRO must ensure a specific written notice is given to each employee in a TDP no later than 30 days before an installation's drug testing program commences. **(T-1).** Employees who have an appropriate notification on file for the position they occupy need not be provided additional notification upon implementation of this plan since the 30-day advance notice period requirement has been satisfied. Random testing may continue without interruption. A sample acknowledgment for CPS or HRO use is provided in **Attachment 8**. (T- 0)

3.3.3. Employees who are currently not subject to testing and are tentatively identified for placement in a TDP will be provided written notice before the action to place the employee into the TDP is finalized **(T-1).** (See sample at **Attachment 8**). The employee will not be subject to random testing for 30 days from the date the notice of testing was acknowledged. **(T-1).**

3.3.4. Vacancy announcements, if used for internal placements, must include a statement informing employees that drug testing is a requirement of the position being filled. **(T-1).** If a vacancy announcement is not used, candidates must be informed of the testing requirement prior to management making a final placement determination. **(T-1).** Failure to include this statement in the vacancy announcement will not preclude internal applicant testing, if advanced written notification is provided to the applicant. **(T-1).**

3.3.4.1. To receive further consideration for the position, the employee must sign the notice and agree to submit to urinalysis testing (See sample at **Attachment 8**). **(T-1).**

3.3.4.2. If after receipt of the notice, the employee refuses to provide a urine specimen as requested, or if illicit drugs are detected through a verified/validated positive test result, he/she will be denied further consideration for the position. **(T-1).** Current employees of the agency may be subject to disciplinary action, including removal, if warranted by the facts of the situation.

3.3.4.3. Written notification to employees informing them that a position is designated for random testing will include:

3.3.4.3.1. Notice that the employee's position, or one into which the employee is tentatively identified for placement, is a TDP or is identified to be a TDP. **(T-1).**

3.3.4.3.2. Notice of the availability and procedures necessary to obtain substance abuse counseling and treatment. **(T-1).**

3.3.4.3.3. Information regarding the opportunity to submit medical documentation that may support legitimate use of a specific drug. **(T-1).**

3.3.5. For those employees newly subject to random drug testing, notice that the employee will have the opportunity to voluntarily identify himself/herself as a user of illicit drugs and to receive counseling or treatment during the 30-day notice period under the "Safe Haven" provisions in **paragraph 5.3.**, and that the employee will be subject to random testing no earlier than 30 days following acknowledgment of new position designation as a TDP. **(T-1).**

3.3.6. Each employee in a TDP will acknowledge in writing that he/she has received and read the notice which states the employee's position has been designated for random drug testing and that refusal to submit to testing may result in disciplinary action, up to, and including removal. **(T-0).**

3.3.7. Written employee notifications with signed statements acknowledging receipt by the employee will be forwarded by HR to AFPC for retention in the employee's Official Personnel Folder (Standard Form 66). **(T-1).**

3.3.8. If the employee refuses to sign the acknowledgment, the employee's supervisor and additional witness will document on the acknowledgment form that the employee received the notice and refused to sign. **(T-1).** The notification will be forwarded by HR to AFPC for retention in the employee's Official Personnel Folder (Standard Form 66). **(T-1).** A copy may also be maintained in the Supervisor's Employee Work Folder. An employee's failure to sign the notice will not preclude testing that employee, or otherwise affect the implementation or execution of this program. **(T-1).**

3.4. Technical Guidelines for Drug Testing.

3.4.1. The Air Force will adhere to scientific and technical guidelines for drug testing programs outlined by HHS.

3.4.2. All civilian specimens will be tested at an approved HHS-certified laboratory. **(T-0).**

3.4.3. Unless covered by exception below, any individual subject to testing under this program will be permitted to provide urine specimens in private, in a rest room stall or similar enclosure, so that the employee is not directly observed while providing the sample. **(T-0).**

3.4.4. When direct observation is necessary in accordance with **paragraph 3.4.11** of this manual, the employee providing the urine specimen will be observed by collection site personnel (DDRPM, DTPAM or other trained observer) with the same sex as the employee. (T-0).

3.4.5. The DDRPM/DTPAM.

3.4.5.1. This role is defined in **paragraph 2.18.** of this manual. In the interest of integrity, an employee cannot perform the functions of the DTPAM regarding his or her own urine specimen. **(T-1).** The supervisor of an employee cannot perform the functions of the DTPAM unless there is no feasible alternative, as determined by the commander/director, in consultation with the SJA. **(T-1).** The roles of the DTPAM and observer will be conducted in a way as to maximize integrity of the collection process. **(T-1).**

3.4.5.2. When a collection must be performed under direct observation, the observer must be the same sex as the employee. **(T-0).** There is no exception to this requirement. DDR Program staff will ensure that the escort and/or observer receive the observer/escort briefing prior to testing. **(T-0).** See Attachments **9** and **10** for observer and escort briefings, respectively.

3.4.6. The Collection Site.

3.4.6.1. A collection site may be a permanent or temporary facility located either at the work site or at a remote site. The term collection site refers to the entire facility used to collect the urine specimen, that is, the rest room or toilet stall and the work area used by the DDRPM/DTPAM. **(T-1).**

3.4.6.2. A collection site, at a minimum, must:

3.4.6.2.1. Allow the employee to have visual privacy while providing the urine specimen. **(T-0).**

3.4.6.2.2. Have a source of water for washing hands, with water only located outside of the immediate area (for example, stall) used by employees to produce urine specimens. The employee shall be instructed to wash with water only and to dry his/her hands prior to each urination attempt. **(T-0).**

3.4.6.2.3. Have a work area for the DDRPM/DTPAM suitable to the needs of the operation that ensures specimen integrity is held intact. **(T-0).**

3.4.6.2.4. Allow the DDRPM/DTPAM to restrict access to the site during the collection. **(T-0).**

3.4.6.3. Any of the following could be used to collect urine specimens provided the area can be arranged to satisfy the minimum requirements listed above:

3.4.6.3.1. All types of restrooms (for example, male or female, employee, doctor's office, hospital, and clinic).

3.4.6.3.2. Mobile facility (for example, a vehicle with an enclosed toilet).

3.4.6.4. The DDRPM/DTPAM's work area should be located outside the restroom.

3.4.6.5. To ensure security at a collection site while collections are being conducted, the following measures must be taken:

3.4.6.5.1. Restrict access to only authorized personnel. **(T-0).**

3.4.6.5.2. Restrict access to collection materials/supplies. **(T-0).**

3.4.6.5.3. Prohibit unobserved entrance/exit to/from the site. **(T-0).**

3.4.6.5.4. Provide for secure handling/storage of specimens from collection until shipment. Security and specimen handling procedures may vary significantly depending on whether the collection site is at a permanent or temporary location. **(T-0).** When the collection site is a permanent facility that is used primarily for collections, all materials and supplies are readily available and there will normally be cabinets, lockers, or refrigerators that can be used to secure specimens prior to shipment to the laboratory. **(T-0).** Additionally, all records are maintained at the permanent site with appropriate copies of documents being sent to the laboratory, Air Force offices with appropriate need to know, and MRO. **(T-1).** For temporary or remote collection sites, all supplies are brought to the site and then the site is returned to its original condition and normal use. **(T-1).** In these cases, the DDRPM/DTPAM will normally transport the records and specimens to another location (in other words, unless the specimens are shipped to the laboratory directly from the temporary collection site). **(T-1).** This other location will then be used to store records, prepare specimens for shipment to the laboratory (if applicable), and distribute documents as required. **(T-1).** With the transfer of records and specimens, which may occur when a temporary site is used, a primary concern for the DDRPM/DTPAM is to ensure that chain of custody is maintained for the specimens. **(T-1).**

3.4.6.6. In final preparation of the site, any water supply available in the collection site must be controlled to prevent the employee from attempting to dilute the specimen. **(T-0).** This includes any water supply in an immediately adjacent area to which the employee may have access prior to handing the specimen to the DDRPM/DTPAM. A bluing agent must be added to the tank or toilet bowl that is accessible to the employee. **(T-0).** The restroom needs to be inspected by a DDR staff member or escort before and after each collection for items that could be used to adulterate or alter a specimen. **(T-0).** The staff or escort will inspect the toilet bowl after each collection to validate bluing agent is intact, then flush it and re-blue water for the next collection. **(T-0).** The following are acceptable ways to control access to a water supply:

3.4.6.6.1. Use tape to prevent opening/turning faucet handles.

3.4.6.6.2. Close the shutoff valve for the water supply. If access to a water supply in the rest room cannot be controlled, the DDRPM/DTPAM may tell the employee that he or she will be listening at the entrance to the restroom for any sounds associated with the employee attempting to use the available sources of water. Alternatively, the DDRPM/DTPAM may enter the rest room with the employee if the DDRPM/DTPAM has the same sex as the employee but remains outside the toilet stall.

3.4.7. Collection Supplies.

3.4.7.1. The DDRPM/DTPAM must ensure that the following supplies are available to conduct proper collections:

3.4.7.1.1. Clean (single-use) wrapped or sealed, specimen bottles with appropriate caps/lids. **(T-0).**

3.4.7.1.2. Clean (single-use) wrapped or sealed, collection containers for each employee to urinate into. **(T-0).**

3.4.7.1.3. Temperature strips that can be attached to the exterior surface of collection containers or specimen bottles to measure the temperature within four minutes after void. The temperature strips must be capable of temperature readings between 90-100 F (32-38 C). If the temperature strip does not appear to be working properly, the DDRPM/DTPAM must take the specimen temperature using an infrared thermometer or other technology to measure the specimen temperature, providing the measuring instrument does not come into contact with the specimen. **(T-0).**

3.4.7.1.4. Appropriate temperature measuring device that can be used to measure an employee's body temperature if the temperature of the specimen is outside of the range (32-38C/90-100 F) listed in the HHS Substance Abuse and Mental Health Services Administration Center for Substance Abuse Prevention, *Urine Specimen Collection Handbook for Federal Agency Workplace Drug Testing Programs*, October 1, 2017. **(T-0).**

3.4.7.1.5. Federal Drug Testing Custody and Control Form (CCF). **(T-0).**

3.4.7.1.5.1. All urine specimens must be collected while maintaining chain of custody. Chain of custody is the term used to describe the process of documenting the handling of a specimen from the time an employee provides the specimen to the DDRPM/DTPAM until the results are reported by the designated drug testing laboratory. **(T-0).**

3.4.7.1.5.2. For all specimens collected, an Office of Management and Budget approved Federal Drug Testing CCF, must be used to document the collection of a specimen at the collection site. **(T-0).**

3.4.7.1.5.3. The Federal Drug Testing CCF consists of the following components:

3.4.7.1.5.3.1. Copy 1. Original. Must accompany specimen to the laboratory; **(T-0).**

3.4.7.1.5.3.2. Copy 2. MRO copy; **(T-0).**

3.4.7.1.5.3.3. Copy 3. Collector copy; **(T-0).**

3.4.7.1.5.3.4. Copy 4. Employer copy, for inclusion within the supervisor's employee work folder; **(T-0).** and

3.4.7.1.5.3.5. Copy 5. Donor (employee) copy. **(T-0).**

3.4.7.1.5.3.6. The reverse side of Copy 5 and **Attachment 3** of this manual provide guidance on completing the Federal Drug Testing CCF.

3.4.7.1.6. Tamper-evident labels/seals for the specimen bottles that have the same preprinted specimen identification number that appears on the Federal Drug Testing CCF. **(T-0).** The appropriate labels/seals are provided with each Federal Drug Testing CCF. **(T-0).** The tamper-evident seal also serves as a label; therefore, it will be referred to either as the tamper-evident label/seal or as the label/seal. **(T-0).**

3.4.7.1.6.1. Separate supply of tamper-evident seals. **(T-0).** Tamper-evident tape used for military testing is acceptable. Occasionally, the tamper-evident label/seal provided with the Federal Drug Testing CCF will not properly adhere to the specimen bottle because of environmental conditions (for example, moisture, temperature and specimen bottle material). When this occurs, the DDRPM/DTPAM should have a separate tamper-evident seal that can be used to seal the specimen bottle. If after two attempts, the tamper-evident label/seal provided will not properly adhere to the specimen bottle because of environmental conditions then the sample will be disregarded and another opportunity to provide a sample will be scheduled.

3.4.7.1.7. Leak-resistant plastic bags in which sealed specimen bottles are placed prior to shipment to the laboratory. **(T-0).**

3.4.7.1.8. Absorbent material that is placed inside the leak-resistant plastic bag in case the specimen bottle leaks during shipment. **(T-0).**

3.4.7.1.9. Shipping containers/mailers that can be labeled for transporting specimens to the laboratory and that can be securely sealed to eliminate the possibility of undetected tampering. The above items are supplied, as collection kits (in other words each collection kit contains the items needed to collect a specimen from an employee and send it to a laboratory for testing). **(T-0).**

3.4.7.1.10. Bluing agent to add to water in the toilet bowl or tank to discourage adulteration or dilution of the specimen. **(T-0).**

3.4.7.1.11. DDRPM/DTPAM is required to have identification with their name and their employer’s name, address, and telephone number. **(T-0).** The collector is required to provide their identification (employee badge or employee list) if requested by the donor. **(T-0).** There is no requirement for the collector to have photo identification or to provide their driver's license with an address.to provide his or her identification if requested by the employee. The DDRPM/DTPAM is not required to provide any certification or other documentation to the employee proving the DTPAM’s training in the collection process.

3.4.7.1.12. Storage box, area, or place where specimens can be stored before shipment to the laboratory. **(T-0).** If a specimen is not immediately prepared for shipment after collection, chain of custody must be maintained by placing the specimen in a secured temporary location (for example, inside a storage area that is always maintained within the line of sight of the DDRPM/DTPAM to ensure that no one has access to the specimen). **(T-0).**

3.4.7.1.13. The HHS requires the DDRPM/DTPAM wear single-use disposable gloves while handling specimens. **(T-0).** The Occupational Safety and Health Administration published specific guidelines addressing protection of employees who may be exposed to potentially infectious body fluids (Title 29 United States Code, Part 1910.1030, Section §791).

3.4.8. Employee identification.

3.4.8.1. The employee must be positively identified as the individual selected for testing. **(T-0).** Acceptable methods of identification are:

3.4.8.1.1. State or Federal government-produced official photo ID (for example, driver's license or ID card, etc.); or

3.4.8.1.2. Positive identification by a supervisor.

3.4.8.2. The following are not acceptable ways to identify the employee:

3.4.8.2.1. Identification by a co-worker or another employee; or

3.4.8.2.2. Single non-photo identification card (for example, social security card, credit card, union or other membership cards, pay vouchers, voter registration card).

3.4.9. Collection Steps.

3.4.9.1. The following steps describe a typical urine collection procedure under the Mandatory Guidelines as established by the HHS. Errors or omissions in some of the steps may result in a specimen being unacceptable for testing at the laboratory, or the results being declared invalid, upon review by the MRO. **Employee "refusals to test" must be reported immediately to the servicing SJA and to the Civilian Personnel Office/HR Representative.**

3.4.9.1.1. After preparing the collection site and when the employee arrives, the collector verifies the employee's identification and begins the collection process without delay. **(T-0). Do not wait because the employee states that he or she is not ready or is unable to urinate.** If the employee states that he or she is unable to provide a urine specimen, continue with the collection procedure. Ensure the required information is provided in Step 1 of the Federal Drug Testing CCF. **(T-0).** This includes:

3.4.9.1.1.1. Submitting unit's name, address, and identification number (if applicable). **(T-0).**

3.4.9.1.1.2. MRO's name and address. **(T-0).**

3.4.9.1.1.3. The employee's DoD Identification Number, which is found on the back of the employee's Common Access Card, should be used. **(T-0).** The Social Security Number should not be used on these forms. The acceptable means of sending the MRO copy to the MRO is via the Army Safe site at: <**https://safe.amrdec.army.mil/safe/welcome.aspx**>.

3.4.9.1.1.4. Reason for test (in other words, random, reasonable suspicion, etc.). **(T-0).**

3.4.9.1.1.5. Tests to be performed (in other words, drugs for which the specimen will be tested). **(T-0).** When conducting reasonable suspicion or mishap testing, the Air Force agency may have a urine specimen tested for any drug listed in Schedule I or II of the Controlled Substances Act. See **paragraph 3.1.5.** for more information.

3.4.9.1.1.6. Collection's site address. **(T-0).**

3.4.9.1.1.7. Collector's phone number. **(T-0).**

3.4.9.1.1.8. Collector's fax number (mark "N/A" or "None" if not applicable). **(T-0).**

3.4.9.1.2. The DDRPM/DTPAM instructs the employee to remove any unnecessary outer clothing such as a coat or jacket that might conceal items or substances that could be used to tamper with, adulterate, or substitute the employee's urine specimen. **(T-0).** The DDRPM/DTPAM will ensure that all personal belongings such as a purse or briefcase remain with the outer garments in a secured location. **(T-0).** The employee may retain his or her wallet. The DDRPM/DTPAM directs the employee to empty his or her pockets and display the items to ensure that no items are present that could be used to adulterate the specimen. **(T-0).** If nothing is there that can be used to adulterate the specimen, the employee places the items back into the pockets and the collection procedure continues. If the employee refuses to show the DDRPM/DTPAM the items in his or her pockets, this is considered a refusal to test. **(T-0).** If an item is found that appears to be brought to the collection site with the intent to adulterate the specimen, this is considered a refusal to test, and the items found must be documented (for example, photograph, memorandum for record). **(T-0).** If the item appears to be inadvertently brought to the collection site, the DDRPM/DTPAM shall secure the item and continue with the normal collection procedure.

3.4.9.1.3. The DDRPM, DTPAM, or escort instructs the employee to wash (with water only) and dry his or her hands under the DTPAM's or escort's observation. **(T-0).** The employee will not be allowed any further access to water or other materials that could be used to adulterate or dilute the specimen. **(T-0).** If the employee refuses to wash their hands when instructed, this is considered a refusal to test. **(T-0).**

3.4.9.1.4. The DDRPM/DTPAM gives the employee the collection kit or container (if it is separate from the kit). If the kit or container is wrapped/sealed, either the DDRPM/DTPAM may unwrap or break the seal in the employee's presence or the employee may unwrap or break the seal in the DDRPM/DTPAM's presence. **(T-0).**

3.4.9.1.5. Only the specimen collection container is unwrapped/unsealed at this time (in other words, the specimen bottles remain wrapped/sealed). **(T-0).**

3.4.9.1.6. The employee takes only the collection container into the restroom, toilet stall, or partitioned area to provide the specimen in private. **(T-0).** The DDRPM, DTPAM, or escort instructs the employee not to flush the toilet or to use any source of water that could not be secured. **(T-0).**

3.4.9.1.7. The DDRPM, DTPAM, or escort should remind the employee to leave the restroom, toilet stall, or partitioned area as quickly as possible after the employee has voided into the collection container.

3.4.9.1.8. The DDRPM/DTPAM is required to read the temperature of the specimen within four minutes of collection to determine if it is in the acceptable range. The employee must minimize the time between voiding into the collection container and leaving the restroom, toilet stall, or partitioned area. **(T-0).**

3.4.9.1.9. The employee gives the specimen collection container to the DDRPM/DTPAM immediately upon leaving the restroom, toilet stall or partitioned area. **(T-0).** The DDRPM/DTPAM will ensure the bottle is closed. **(T-0).** The DDRPM, DTPAM, escort, and employee will maintain visual contact of the specimen until the seal is placed over the specimen bottle cap/lid by the DDRPM and/or DTPAM. **(T-0).**

3.4.9.1.10. The DDRPM/DTPAM performs the following checks:

3.4.9.1.10.1. Checks the specimen's color and look for any signs of contaminants. Any unusual findings shall be noted on the Federal Drug Testing CCF. **(T-0).**

3.4.9.1.10.2. Checks the specimen volume to ensure there is at least 45 mL in the collection container, checks the temperature to ensure that it is within the acceptable range, and inspects the specimen for adulteration or substitution. **(T-0).** (Later this will be separated into 2 bottles, the first with 30 mL and the second with 15 mL).

3.4.9.1.10.3. If the volume is less than 45 mL in the collection container and the temperature is within the acceptable range, the specimen is discarded and a second specimen is collected using a new kit. **(T-0).**

3.4.9.1.10.4. If the volume is less than 45 mL in the collection container and the temperature is outside the acceptable range, the sample circumstances will be annotated in the remarks on the collection form, and the specimen forwarded to the lab for testing and a second specimen is collected under direct observation using a new kit. **(T-0).**

3.4.9.1.10.5. If the temperature is not within the acceptable range (in other words, 32-38oC/90-100oF), another specimen is collected under direct observation and both specimens will be forwarded to the laboratory for testing. **(T-0).** An employee may volunteer to have his or her oral temperature taken to provide evidence to counter the reason to believe the employee may have altered or substituted the specimen caused by the specimen's temperature falling outside the prescribed range. The DDRPM/DTPAM will use a new Federal Drug Testing CCF for the second specimen and will use new specimen containers and bottles. **(T-0).**

3.4.9.1.10.6. When another specimen is to be collected, HHS guidelines permit giving the employee a reasonable amount of fluid to drink (an 8 ounce glass of water every 30 minutes, not to exceed 40 ounces over a period of 3 hours) to provide a second specimen, distributed reasonably through a period until the employee has provided a new sufficient amount of urine. **(T-0).**

3.4.9.1.10.7. Reads the specimen temperature within four minutes after void and checks or marks the appropriate temperature box on the Federal Drug Testing CCF. **(T-0).** If the temperature is out of the acceptable range, record the actual temperature in the Federal Drug Testing CCF remarks block. **(T-0).** If the employee voids into a collection container, the DDRPM/DTPAM reads the temperature before pouring the specimen into the specimen bottles. **(T-0).**

3.4.9.1.10.8. Inspects the specimen for adulteration or substitution. **(T-0).**

3.4.9.1.10.8.1. The DDRPM/DTPAM will inspect the specimen for any unusual color, presence of foreign objects or material or other signs of adulteration. **(T-0).**

3.4.9.1.10.8.2. If it is apparent on visual inspection that the employee has adulterated or substituted the specimen, the DDRPM/DTPAM will proceed to collect another specimen under direct observation following the above steps and both specimens will be forwarded to the laboratory for testing. **(T-0).** Under no circumstances is the DDRPM/DTPAM permitted to collect and add or combine urine from two separate voids. **(T-0).**

3.4.9.1.11. The DDRPM, DTPAM, or donor pours at least 30 mL of the specimen from the collection container into a specimen bottle, places the lid/cap on the bottle. **(T-0).** The DDRPM/DTPAM uses the "A" bottle seal to secure this bottle. The DDRPM, DTPAM, or donor also pours at least 15 mL of the specimen from the collection container into a specimen bottle, places the lid/cap on the bottle and uses the "B" bottle seal to secure this bottle. **(T-0).** The seal on each bottle must be placed over the lid/cap to ensure that the lid/cap cannot be removed without destroying the seal. **(T-0).** The employee must be present to observe the sealing of the specimen bottles. **(T-0).**

3.4.9.1.11.1. Occasionally the tamper-evident seal provided with the Federal Drug Testing CCF will not properly adhere to the specimen bottle because of environmental conditions (for example, moisture, temperature, and specimen bottle material). **(T-0).** When this occurs, the DDRPM/DTPAM will still apply the tamper-evident seal provided with the Federal Drug Testing CCF and then apply a second, separate tamper-evident seal to seal the specimen bottle. **(T-0).** This second seal is placed perpendicular to the Federal Drug Testing CCF seal to avoid obscuring information on the Federal Drug Testing CCF seal. **(T-0).** This second seal must be initialed and dated by the DDRPM/DTPAM and should be initialed by the employee (in other words, the employee will be present when it is apparent that the Federal Drug Testing CCF seal is not properly adhering to the specimen bottle; however, a seal may appear to adhere when initially placed on the bottle, but after several minutes the seal begins to lift off along the edges). **(T-0).** The DDRPM/DTPAM must also provide any appropriate comment on the remarks line of the Federal Drug Testing CCF stating why the second seal was used. **(T-0).**

3.4.9.1.11.2. If while sealing and initialing the Federal Drug Testing CCF seal the DDRPM/DTPAM or employee accidentally breaks/damages the seal, the DDRPM/DTPAM must apply a second, separate tamper-evident seal to seal the specimen bottle. **(T-0).** This second seal is to be placed perpendicular to the Federal Drug Testing CCF seal to avoid obscuring information on the Federal Drug Testing CCF seal. **(T-0).** This second seal must be initialed and dated by the DDRPM/DTPAM and initialed by the employee. **(T-0).** The DDRPM/DTPAM must also provide an appropriate comment on the remarks line stating why the second seal was used. **(T-0).**

3.4.9.1.12. Once sealed, the collector annotates the date on the bottle seals, and has the employee initial the bottle seals, validating it is their specimen and the bottles were sealed in their presence. **(T-0).**

3.4.9.1.13. Since the specimen bottle is now sealed and does not have to be under the employee's direct observation at this point, the employee can wash his or her hands with soap and water or alcohol-based solution.

3.4.9.1.14. The employee reads the certification statement on Copy 2 (Step 5) of the Federal Drug Testing CCF, and certifies that the specimen identified as having been collected from him or her is in fact the specimen that he or she provided by signing the certification statement and providing his or her date of birth, printed name and work telephone number. **(T-0).**

3.4.9.1.14.1. If the employee refuses to sign the form, the DDRPM/DTPAM must make a notation on the remarks line to that effect. The same procedure must be followed if the employee refuses to initial the label. **(T-0).**

3.4.9.1.15. The DDRPM/DTPAM completes the DDRPM/DTPAM certification section of the Federal Drug Testing CCF by printing the name and address of the collection facility and the DDRPM/DTPAM's duty telephone number; printing his or her name; signing the certification statement; and recording the date and time of the collection. **(T-0).**

3.4.9.1.16. To facilitate the collection process, the DDRPM/DTPAM may fill in the name and address of the collection facility and the DDRPM/DTPAM's business telephone number and fax number (if none, indicate "N/A" or "None") on the spaces provided in Step 1 prior to starting the collection procedure.

3.4.9.1.17. In Step 2 on the Federal Drug Testing CCF, the remarks block includes space to allow the DDRPM/DTPAM to record any remarks concerning the collection.

3.4.9.1.18. The DDRPM/DTPAM signs the first line of the chain of custody block (Step 4) indicating he or she has received the specimen from the employee, prints his or her name, date and time of collection, and the name of the courier or shipment service being used to ship the specimen to the laboratory. **(T-0).**

3.4.9.1.19. The DDRPM/DTPAM places the specimen bottles and Copy 1 of the Federal Drug Testing CCF inside an appropriate leak-resistant plastic bag that serves as a secondary barrier to prevent any leakage from damaging the shipping container or documents. **(T-0).**

3.4.9.1.20. The DDRPM/DTPAM removes Copy 4 (Employer) and Copy 5 (Donor) and gives them to the employee. **(T-0).** The employee returns Copy 4 to their supervisor for inclusion in the employee work folder and keeps Copy 5 for their personal record. **(T-0).** Any secured personal items are returned and the employee is permitted to leave the collection site.

3.4.9.1.21. If the tamper-evident label/seal from the Federal Drug Testing CCF is broken on a specimen bottle after the employee leaves the collection site, ***the collection must be cancelled***. **(T-0).** Notify Civilian Personnel office and the employee's supervisor of the situation and schedule a new collection. **(T-0).**

3.4.9.1.22. The DDRPM/DTPAM places the leak-resistant plastic bag that contains the specimen bottle and Federal Drug Testing CCF in an appropriate shipping container and seals the shipping container as appropriate. **(T-0).** If the shipping container is not transported to the laboratory on the same day that the specimen was collected, the DDRPM/DTPAM must store the shipping container in a secure location until it is shipped to the laboratory. **(T-0).** A secure location is protected by double locks (for example locked cabinet in a locked room) with access limited to the DDRPM/DTPAM. **(T-0).** Specimens are to be shipped within 24 hours after the collection or during the next business day. **(T-0).**

3.4.9.1.23. The DDRPM/DTPAM sends Copy 2 to the MRO. Copy 3 is retained by the DDRPM/DTPAM. **(T-0).**

3.4.9.1.24. Following each urine specimen collection, the DDRPM/DTPAM should check the collection site to ensure that the employee did not leave anything that could have been used by the employee or could be used by the next employee to adulterate or dilute a specimen.

3.4.10. Insufficient specimen collection procedures.

3.4.10.1. When an employee is unable to provide a urine specimen, the employee may have intentionally urinated prior to arriving at the collection site, could not provide a specimen as directed by the collector, or has a physical disability making it impossible to provide a specimen. ***All instances when an employee fails to provide a sufficient specimen after all directed attempts, or when an employee refuses to test, must be reported immediately to the Civilian Personnel Office/HR Representative.*** **(T-0).**

3.4.10.2. If an employee tells the collector, upon arrival at the collection site, that he or she cannot provide a specimen, the collector must begin the collection procedure regardless of the reason given. **(T-0).**

3.4.10.3. At the point in the collection procedure where the collector provides the employee with a collection container, the collector does the following:

3.4.10.3.1. Requests that the employee try to provide a specimen regardless of the reason given. **(T-0).** The donor must demonstrate their inability to provide a valid specimen when they come out of the restroom with an empty collection container. **(T-0).**

3.4.10.3.2. Immediately begin a second collection using the same procedures, the same collection container (in other words, if no specimen was provided upon the first attempt), and the same Federal CCF. **(T-0).**

3.4.10.3.3. If the employee indicates that they may be able to provide a specimen if given more time the collector will:

3.4.10.3.3.1. Offer the donor a reasonable amount of fluid to drink distributed reasonably through a period of up to three hours (for example, an eight ounce glass of water every thirty minutes, not to exceed forty ounces over a period of three hours) or until the donor has provided a sufficient amount of urine, whichever occurs first. **(T-0).** The donor is not required to drink fluids during the waiting period. The donor must remain under the direct observation of the collector to prevent the donor from possibly compromising the collection process. **(T-0). Note:** The collector must NOT under any circumstances combine urine collected from separate voids to create one specimen of sufficient volume. **(T-0).**

3.4.10.3.3.2. Instruct the donor to let him or her know when he or she is able to provide a sufficient quantity of specimen. **(T-0).** It is recommended that you allow sufficient time to have only one additional attempt rather than having to document several unsuccessful attempts. Be sensitive to how frequently you ask a donor to attempt to provide a specimen.

3.4.10.3.3.3. Record the time of each attempt to provide a specimen, whether there was no specimen provided or the quantity of specimen provided, and the total ounces of fluid given to the employee (for example, on the Remarks line in Step 2 of the Federal CCF). **(T-0).** Discard any inadequate specimen and the collection container that was used for the void, but retain the Federal Drug Testing CCF. **(T-0). Note:** If there was actually no specimen provided on an attempt, the collection container may be used for the next attempt.

3.4.10.3.3.4. If the donor states that they are unable to provide a specimen, or if the donor has not provided sufficient volume of specimen in three hours from the time of the donor's first attempt, discontinue the collection process. **(T-0).**

3.4.10.3.3.5. Record the reason for not collecting the specimen on the "Remarks" line, and mark the "None Provided" box in Step 2 of the Federal CCF. **(T-0).**

3.4.10.3.3.6. Provide a copy of the Federal CCF to the donor and request that the donor leave the collection site. Discard Copy 1 of the Federal CCF (no valid specimen was collected). **(T-0).**

3.4.10.3.3.7. Provide a copy of the Federal CCF to the MRO and to the employee's designated representative within twenty-four hours or the next business day. **(T-0).**

3.4.10.3.4. If the donor refuses to attempt to provide a specimen, refuses to provide a second specimen, leaves the collection site before the collection process is completed, refuses a direct observed collection, or refuses to provide an alternate specimen, these are considered a refusal to test. **(T-0).**

3.4.11. Direct Observation Collections.

3.4.11.1. A direct observation collection procedure is the same as a routine collection procedure with the additional requirement that an observer physically watches the employee urinate into the collection container. The determination that direct observation is necessary must be based on an individualized determination that the visual monitoring is warranted under the circumstances. **(T-0).** The DDRPM/DTPAM shall review and concur, in advance, any decision with any collector to obtain a specimen under direct observation. **(T-0).** A direct observation collection must be conducted by a DDRPM/DTPAM, or other trained observer, with the same sex as the employee. **(T-0). There are no exceptions to this requirement.** If the employee declines to have a direct observed collection, the collector reports a refusal to test to the DDRPM/DTPAM and contacts the CPS or HRO for appropriate action. **(T-0).**

3.4.11.2. A direct observed collection procedure may only be used when:

3.4.11.2.1. A previous drug test result for a specimen provided by the employee was reported by an MRO as drug positive, adulterated, substituted, invalid without a legitimate medical reason, or cancelled because the split specimen failed to reconfirm the primary specimen results or could not be tested; **(T-0)** or

3.4.11.2.2. At the collection site, an immediate collection of a second urine specimen is required because the temperature of the specimen collected during a routine collection is outside the acceptable temperature range (32-38 Celsius/90-100 degrees Fahrenheit), or there is an indication that the donor has tampered with the specimen (e.g., abnormal physical characteristic such as unusual color, excessive foaming when shaken, unusual odor). **(T-0).**

3.4.11.3. Chain of custody for a direct observation collection.

3.4.11.3.1. There may be instances when the DDRPM/DTPAM is not able to serve as a direct observer (for example, when the sex of the DDRPM/DTPAM is different from that of the employee). In these instances, the DDRPM/DTPAM must call upon another designated individual to act as the observer. **(T-0).**

3.4.11.3.2. The collector checks the box for an observed collection in Step 2 of the Federal Drug Testing CCF and provides the name of the observer and the reason for an observed collection on the Remarks line in Step 2 of the Federal Drug Testing CCF. **(T-0).** If there is insufficient room on the Remarks line, the collector must attach a separate memorandum for record explaining the use of an observed collection to the Federal Drug Testing CCF. **(T-0).**

3.4.11.3.3. The observer must never touch or handle the collection container unless the observer is also serving as the collector. **(T-0).**

3.4.12. Documentation Errors/Fatal Flaws.

3.4.12.1. When a HHS-certified laboratory receives a specimen bottle and its associated Federal Drug Testing CCF, it checks to see if the specimen identification number on the specimen bottle seal matches the number on the Federal Drug Testing CCF, that the specimen bottle seal is intact, and that the Federal Drug Testing CCF has been properly completed by the DDRPM/DTPAM. **(T-0).**

3.4.12.2. Per HHS guidelines, the following discrepancies are considered to be fatal flaws and the laboratory must stop the testing process and reject the specimen for testing and indicate the reason for rejecting the specimen on the Federal Drug Testing CCF:

3.4.12.2.1. The specimen identification number on the specimen bottle seal does not match the specimen identification number on the Federal Drug Testing CCF or the identification number is missing either on the Federal Drug Testing CCF or on the specimen bottle seal. **(T-0).**

3.4.12.2.2. The specimen bottle seal is broken or shows evidence of tampering on the specimen bottle from a single specimen collection or on the primary (Bottle A) specimen from a split specimen collection (and the split specimen cannot be designated as the primary (Bottle A) specimen. **(T-0).**

3.4.12.2.3. The collector's printed name and signature are omitted on the Federal Drug Testing CCF. **(T-0).**

3.4.12.2.4. There is an insufficient amount of urine for analysis in the specimen bottle from a single specimen collection or in the primary (Bottle A) specimen from a split specimen collection (unless the split specimen can be designated as the primary (Bottle A) specimen. **(T-0).**

3.4.12.3. Per HHS guidelines, the following discrepancies are considered to be correctable flaws:

3.4.12.3.1. If a DDRPM/DTPAM failed to sign the Federal Drug Testing CCF, the laboratory must attempt to recover the DDRPM’s or DTPAM's signature before reporting the test result. **(T-0).** If the DDRPM/DTPAM can provide a memorandum for record recovering the signature, the laboratory may report the test result for the specimen. If the laboratory cannot recover the DDRPM’s or DTPAM's signature, the laboratory must report a rejected for testing result and indicate the reason for the rejected for testing result on the Federal Drug Testing CCF.

3.4.12.3.2. If a specimen is submitted using a non-Federal form or an expired Federal Drug Testing CCF, the laboratory must test the specimen and also attempt to obtain a memorandum for record explaining why a non-Federal form or an expired Federal Drug Testing CCF was used and ensure that the form used contains all the required information. **(T-0).** If the laboratory cannot obtain a memorandum for record from the DDRPM/DTPAM, the laboratory must report a rejected for testing result and indicate the reason for the rejected for testing result on the report to the MRO. **(T-0).**

3.4.12.3.3. Once contacted by the laboratory, the DDRPM/DTPAM should immediately respond to the laboratory indicating whether he/she can or cannot provide a memorandum to recover the discrepancy and/or error of omission. Responding after 30 days to a laboratory’s request for information regarding errors or discrepancies may lead to the laboratory discarding the specimen prior to testing.

Chapter 4

PROCESSING TEST RESULTS

4.1. Confidentiality of Test Results.

4.1.1. The laboratory may disclose MRO-verified laboratory test results only to the MRO or the representative of the MRO.

4.1.2. Test results will be protected in accordance with all applicable Federal laws, rules and regulations regarding confidentiality of records, including the *Privacy Act*, Title 5 United States Code 552a, and Title 42 Code of Federal Regulations, Chapter 1, Subchapter A, Part 2. **(T-0).**

4.1.3. The MRO may maintain only those records necessary for compliance with this manual. Any records of the MRO, or the staff of the MRO, including drug test results, may be released to any management official for purposes of auditing the activities of the MRO, except that the disclosure of the results of any audit may not include personal identifying information on any employee. **(T-0).**

4.1.4. The by-name or other identifier results of a drug test on the employee may not be disclosed without the prior written consent of such employee, unless the disclosure would be: **(T-0).**

4.1.4.1. To the MRO.

4.1.4.2. To any official whose duties necessitate review of the test results in an official capacity. Examples include but are not limited to: releasing information in order to investigate allegations resulting from grievances, appeals, and other complaints; to initiate or decide on disciplinary personnel action or to advise on such actions; or to initiate security clearance action against the employee. These officials commonly include: Installation SJA, CPS or HRO, Air Force Office of Special Investigations, Security Forces Squadron, ADAPT, employee's supervisor, and commanders or directorate directors.

4.1.4.3. Pursuant to the order of a court of competent jurisdiction or where required by the United States Government to defend against any challenge against any disciplinary action.

4.1.4.4. Test results with all identifying information removed will also be made available to Air Force personnel, including the Air Force Civilian Drug Testing Program manager, for data collection and other activities necessary to ensure Air Force compliance with the *Anti-Drug Abuse Act* of 1988.

4.1.4.5. In accordance with the *Privacy Act*, 5 United States Code 552a or as required by other Federal law.

4.1.4.6. In the case of a drug test result verified as positive, diluted, substituted or adulterated by the MRO in accordance with the HHS *Medical Review Officer Manual*, information collected during the course of the MRO's interview with the employee may be disclosed to any official whose duties include shaping management's response to evidence of the employee's apparent illicit drug use (HHS *Specimen Collection Handbook*).

4.2. Opportunity to Justify a Laboratory-Verified Positive Test Result, Adulterated Specimen Result or Specimen Not-Suitable-for-Testing Result.

4.2.1. When a laboratory-verified positive result is returned by the laboratory, the MRO will perform the duties outlined by HHS guidelines in order to validate the results. **(T-0).** For example, the MRO may choose to conduct employee medical interviews, review employee medical history, or review any other biomedical factors. **(T-0).**

4.2.2. Department of Health and Human Services - MRO Interview Procedure. **(T-0).**

4.2.2.1. The MRO determines that the information on the Federal Drug Testing CCF is correct and complete. The MRO makes telephone contact with the employee associated with a positive, substituted, adulterated or invalid drug test result.

4.2.2.2. The MRO conducts an interview to discern any legitimate and substantiated reason for the positive, substituted, adulterated or invalid result drug test result.

4.2.2.3. The MRO determines whether the drug test result should remain categorized the same as presented by the laboratory.

4.2.2.4. The MRO reports validated result to the designated point of contact at the employee's Air Force Installation.

4.2.2.5. The MRO and person of contact maintain records of the result and employee information.

4.3. MRO Review of Medical Records.

4.3.1. The MRO must review all medical records made available by the individual in determining whether a laboratory verified positive test could have resulted from legally prescribed medication. **(T-0).** The MRO also may request the individual submit additional evidence to justify a laboratory verified positive drug test result received from a laboratory. Evidence to legitimize a positive result may include:

4.3.1.1. A valid prescription.

4.3.1.2. A verification from the individual's physician of a valid prescription.

4.3.2. Individuals are not entitled, however, to present evidence to the MRO in a trial-type administrative proceeding, although the MRO has the discretion to accept evidence in any manner the MRO deems most efficient or necessary. **(T-0).**

4.3.3. If the MRO determines there is no justification for the positive test result, the result will then become a MRO-verified positive test result. The MRO will then notify the DDRPM/DTPAM of the positive test result. **(T-0).**

4.4. Reporting of Results under the Air Force Civilian Drug Testing Program. (T-0).

4.4.1. The MRO staff will receive all laboratory test results and associated documents from the approved drug testing laboratory for all employees in TDPs, applicants, and quality control specimens.

4.4.2. The MRO staff will:

4.4.2.1. Match-up the laboratory results with the appropriate individual tests or quality control specimens. **(T-0).**

4.4.2.2. Review laboratory reports, chain of custody forms, and associated documentation for collection or specimen deficiencies which indicate the validity of the results may be scientifically insufficient because certain procedures were not followed or standards were not fully met. **(T-0).**

4.4.2.3. Advise the Air Force Civilian Drug Testing Program manager of significant problems or concerns resulting from laboratory and collection site procedures or practices. **(T-0).**

4.4.2.4. Order a reanalysis of a specimen or special laboratory tests, if necessary. **(T-0).**

4.4.2.5. Recommend the Air Force Civilian Drug Testing Program manager arrange for retesting of employees or applicants tentatively selected for TDPs when warranted. **(T-0).**

4.4.2.6. Review all laboratory verified positive laboratory results and contact/interview employees, applicants tentatively selected for TDPs, physicians, and laboratory toxicologists as necessary to determine whether the results are consistent with the legal use of drugs. **(T-0).**

4.4.2.7. Obtain a copy of the laboratory quantitative result on all opiate positives before contacting the employee (this is intended as a review in order to ensure the laboratory box for morphine or codeine has been appropriately checked). **(T-0).**

4.4.3. Send the Air Force written reports on all MRO-verified positive drug test results and positive test results based on other than illicit drug use no later than the second business day after making such a determination. **(T-0).** The MRO will verify all positive laboratory test results by interviewing the employee to determine whether there is an acceptable medical explanation. **(T-0).** If the MRO determines there is no medical explanation for a positive result (in other words, the result cannot be explained through non-abusive use of a prescription or over-the-counter medication) such a result will be considered a MRO-verified positive test result. **(T-0).** This MRO-verified positive result will be documented in writing and reported to the base-level DDRPM (or DTPAM). **(T-0).**

4.4.4. The MRO will prepare a separate written report on all MRO-verified positive, invalid, unsuitable for testing, and adulterated results, including pertinent documentation, within three business days of receipt of all the information the MRO deems necessary to make a determination. **(T-0).** If the MRO expresses an opinion regarding whether a retest is required and it conflicts with this manual, this manual is controlling. **(T-0).** The finalized report will be forwarded to the base-level DDRPM/DTPAM using secured and traceable methods, such as certified or overnight mail. **(T-0).**

4.4.4.1. The DDRPM/DTPAM, after consulting with HR, will establish procedures for the retesting of all individuals who drug tested positive, substituted, adulterated or invalid prior to the employee returning to work. **(T-1).** If an employee's specimen is untestable due to being narrowly outside acceptable pH range, DDRPMs/DTPAMs should consider shipping any subsequent samples from the employee on cold pack.

4.5. Maintenance and Confidentiality of Records.

4.5.1. Air Force Civilian Drug Testing Program records will be maintained in accordance with all applicable Federal laws, rules and regulations regarding confidentiality of records, including the Privacy Act, 5 United States Code 552a, and 42 Code of Federal Regulations, Chapter 1, Subchapter A, Part 2, and the Rehabilitation Act of 1973 (29 United States Code §791 et seq.) as amended by the Americans with Disabilities Act of 1990, as amended (42 United States Code §12101 et seq.). **(T-0).**

4.5.2. Case files on disciplinary actions for drug use are maintained in accordance with AFI 36-704, Discipline and Adverse Actions and AFMAN 34-310, *Non-appropriated Fund Personnel Management and Administration Procedures*. **(T-1).**

4.5.3. Air Force counseling and treatment records will be maintained in accordance with Federal law and AFI 44-121, *Alcohol Drug Abuse Prevention Treatment Program*, AFI 41-210, *TRICARE Operations and Patient Administration Functions*, and AFI 44-172 *Mental Health*. **(T-1).**

4.5.4. With written documentation, the employee may authorize the disclosure of records to his or her employer for verification of treatment or for a general evaluation of treatment progress. **(T-1).** **Attachment 12** is a sample authorization form for release of patient information and **Attachment 11** is a sample cover memorandum to be provided with the executed authorization form to the recipient of the information advising of the prohibition on further disclosure of the information.

4.5.5. Any employee who is the subject of a drug test will, upon written request, have access to any records relating to such drug test results. **(T-1).**

4.5.6. Except as authorized by law, an applicant not employed by the DoD and tentatively selected for a TDP will not be entitled to records relating to drug test results. **(T-0).**

Chapter 5

FINDINGS OF DRUG USE REQUIRED ACTIONS

5.1. Finding of Drug Use.

5.1.1. An employee may be found to have used illicit drugs on the basis of any appropriate evidence including, but not limited to:

5.1.1.1. Direct observation of drug use;

5.1.1.2. Evidence obtained from an arrest or criminal conviction;

5.1.1.3. A MRO-verified positive test result for the presence of an illicit drug; and

5.1.1.4. An employee's voluntary admission of usage of an illicit drug.

5.2. Mandatory Administrative and Disciplinary Actions.

5.2.1. If the employee that used illicit drugs occupies a TDP, the employee must be removed from the position, and assigned other duties pending a decision on the appropriate disciplinary action. **(T-0).** However, at the discretion of the commander or directorate director, and while making satisfactory progress in treatment, an employee may return to duty in a TDP, if there are reasonable grounds to believe the employee will not engage in further use of illicit drugs endangering public health, safety, or national security. If the employee is returned to duty in a TDP he/she may not be excused from random testing. **(T-0).**

5.2.2. The supervisor directs an employee, in writing, to report to the EAP or ADAPT clinic (if an EAP is unavailable) for initial substance abuse assessment subsequent to an MRO-verified drug positive test, a substance-related incident, or other reasonable suspicion of substance misuse. **(T-0).** The notification will provide specifics of the appointment and advise the employee that attendance is mandatory. **(T-0).** All notices will be coordinated with the servicing CPS or HRO. A sample notification letter is provided in **Attachment 13**. **(T-0).**

5.2.3. Supervisors are required to take appropriate action against any employee found to use illicit drugs in coordination with the CPS or HRO. **(T-0).** Procedures must be consistent with applicable collective bargaining agreements and Air Force and DoD policy. **(T-0).**

5.2.3.1. Disciplinary actions may include the full range of actions as provided in the regulation/instruction that applies, given the type of employee in issue (appropriated fund or non-appropriated fund). For example, AFI 36-704, *Discipline and Adverse Actions*, and/or applicable procedures for termination of probationers, as appropriate apply in cases involving appropriated fund employees; AFI 36-901, *Civilian Senior Executive Management,* applies in cases involving Senior Executive Service employees; and AFMAN 34-310, *Non-appropriated Fund Personnel Management and Administration Procedures*, applies in cases involving non-appropriated fund employees. **(T-1).** Supervisors should work with the CPS (specifically, the servicing Employee Relations Specialist) to determine proper course of action when a specimen reveals evidence of illicit drug use or the employee refuses to provide a urine specimen as requested.

5.2.3.1.1. Use of illicit drugs, including marijuana, is subject to disciplinary and adverse action under, among others, AFI 36-704, *Discipline and Adverse Action*, regardless of state laws on their use. **(T-1).**

5.2.3.2. As required by Executive Order 12564, *Drug Free Federal Workplace*, management will propose appropriate disciplinary action (including removal from federal service) against an employee for any one of the following:

5.2.3.2.1. Refusing to obtain counseling or treatment through a treatment program as required by the Executive Order after having been found to have engaged in illicit drug use. **(T-0).**

5.2.3.2.2. Continued illicit drug use after a first offense of illicit drug use. **(T-0).**

5.2.3.2.3. Altering or attempting to alter a urine specimen or substituting or attempting to substitute a specimen for their own or that of another employee. **(T-0).**

5.2.3.2.4. Failure to successfully complete the mandated and/or agreed upon medically approved drug rehabilitation program. **(T-0).**

5.2.3.3. In rehabilitation testing, employees are subject to unannounced testing for one year (minimum) from the time of a positive test. The frequency and duration of follow up testing will be determined by the Civilian Rehabilitation Team for appropriated fund employees and the HRO for non-appropriated fund employees. **(T-1).**

5.3. Safe Haven Provision. Disciplinary action for illicit drug use will not be initiated for any employee who meets ALL four of the following conditions: (1) voluntarily identifies himself/herself as a user of illicit drugs prior to being notified of the requirement to provide a specimen for testing or being identified through other means (in other words, drug testing, investigation); (2) obtains and cooperates with appropriate counseling or rehabilitation; (3) agrees to and signs a last chance or statement of agreement; and (4) thereafter refrains from illicit drug use. **(T-1).** This does not preclude disciplinary action for other misconduct, (in other words, possession of drugs or drug paraphernalia). **(T-1).**

5.4. Employee Counseling and Assistance. Employees who have self-identified as having a substance abuse problem (which includes alcohol abuse or illicit drug use), or have been identified through other means such as possessing drugs or drug use paraphernalia, or who have been identified through drug testing, will be referred by their supervisor for counseling, assessment, and referral for treatment as prescribed in **Chapter 2**. **(T-0).**

Chapter 6

STATISTICS

6.1. Statistical Information.

6.1.1. If requested by the MAJCOM DDRPM, the installation DDRPM/DTPAM (with input from AFPC, ADAPT, HR, and SJA) will collect and compile statistical data. **(T-1).** Requested data may include the following:

6.1.1.1. Number of employee random tests, reasonable suspicion tests, accident or safety mishap tests, or follow-up tests.

6.1.1.2. Number of confirmed positive tests.

6.1.1.3. Number of employees who have been referred for:

6.1.1.3.1. Initial substance abuse assessment.

6.1.1.3.2. Specimen tampering.

6.1.1.3.3. Refusal to cooperate with substance abuse assessment by the ADAPT, mental health clinic, or contractor-provided services.

6.1.1.3.4. Failure to complete recommended counseling or treatment.

6.1.1.3.5. Confirmed positive follow-up test.

6.1.2. If requested by the MAJCOM DDRPM, the installation DDRPM/DTPAM (with input from AFPC, ADAPT, HR, and SJA) will collect and compile statistical data. **(T-1).** Requested data may include the following:

6.1.2.1. Number of tests of applicants tentatively selected for TDPs.

6.1.2.2. Number of applicants with confirmed positive test results for each drug tested.

6.1.2.3. Number of applicants tentatively selected and who refused to take the test.

6.1.2.4. Number of employees who have been removed for:

6.1.2.4.1. Refusal to submit to urinalysis.

6.1.2.4.2. Refusal to cooperate with treatment.

6.1.2.4.3. Failure to complete recommended counseling or treatment.

6.1.3. If requested by the MAJCOM DDRPM, the installation DDRPM/DTPAM (with input from AFPC, ADAPT, HR, and SJA) will collect and compile statistical data. **(T-1).** Requested data may include the following:

6.1.3.1. Number of employees trained annually in drug abuse prevention, treatment, and workplace issues.

6.1.3.1.1. Number and percent of employees trained.

6.1.3.1.2. Number and percent of supervisors trained.

6.1.3.1.3. Number and percent of new employees/supervisors trained.

6.1.4. This data, along with other pertinent information, will be compiled if requested by MAJCOM DDRPMs to assist in program evaluation. **(T-1).**

Chapter 7

LITIGATION

7.1. Production of Drug Testing Reports and Other Documents During Litigation's Discovery Process

7.1.1. All requests for drug testing reports or other discoverable materials must be initiated by or through the servicing SJA to AFMOA/SGB. **(T-1).**

7.1.2. Servicing SJA will prepare a memorandum requesting the drug testing report or other discoverable material from the designated drug testing laboratory and/or MRO. **(T-1).**

7.1.3. All requests for drug testing reports or other litigation-related material must be forwarded to: Air Force Medical Operations Agency/Biomedical Sciences Corps, Headquarters Air Force Drug Testing Laboratory, 2480 Ladd Street, Building 3750, Lackland AFB, TX 78236-5310, Attention: Air Force Drug Testing Program Manager. **(T-1).**

Chapter 8

USE OF DRUG TESTING SOFTWARE

8.1. DoD Drug Testing Software.

8.1.1. Base-level DDRPMs or DTPAMs will use DoD-approved drug testing software for random testing of civilian personnel. **(T-1).**

8.1.2. DDRPMs/DTPAMs, with input from the Civilian personnel/HRO, must maintain a separate database containing employees identified by Civilian Personnel as occupying a TDP. **(T-1).**

8.1.2.1. The database (listing of personnel) must be updated no less than monthly with accurate current information provided by HR, who will provide the DDRPMs/DTPAMs with information from the automated personnel data system. **(T-1).**

8.1.2.2. Exemptions from the use of the DoD-approved software must be approved by AFMOA/SGB. **(T-1).**

Chapter 9

EMPLOYEE TRAINING

9.1. Supervisory Training Requirements. Note: Management's failure to comply with the employee training requirements described in this section creates no entitlement or right in any employee to contest a disciplinary action based upon an otherwise valid drug test result or other action described in this AFMAN.

9.1.1. The responsibility for initial training of appropriated fund supervisors on substance abuse is a joint ADAPT Program Manager and DDRPM/DTPAM function, under the direction of the Integrated Delivery System. Designated unit training personnel and Wing/Unit Level Training Agencies share responsibility for tracking accomplishment of this training and will ensure established tracking measures are used at all times to ensure effective management of training. **(T-1).**

9.1.2. As supervisors have a key role in establishing and monitoring a drug-free workplace, the Air Force shall provide training to assist supervisors and managers in recognizing and addressing illicit drug use by Air Force employees.

9.1.3. In accordance with the HHS, Substance Abuse and Mental Health Services Administration, *Model Plan for a Comprehensive Drug-Free Workplace Program*, the purpose of supervisory training is to understand: **(T-0).**

9.1.3.1. The Air Force's substance abuse policy, procedures, and program;

9.1.3.2. Types and effects of drugs;

9.1.3.3. Symptoms of drug use and effects on performance and conduct;

9.1.3.4. How to identify employees in need of assistance;

9.1.3.5. Role and operation of EAP;

9.1.3.6. Intervention and referral to the EAP; and

9.1.3.7. Return of employee to workplace and follow-up.

9.2. Employee Education.

9.2.1. The responsibility for initial and annual substance abuse awareness education for all appropriated fund employees is a joint ADAPT Program Manager and DDR Program function (where available), under the direction of the Integrated Delivery System. Unit commanders/directors, through training monitors, ensure training requirements listed below are met and documented. **(T-0).** Consistent with the Substance Abuse and Mental health Services Administration's *Model Plan for a Comprehensive Drug-Free Workplace Program*, substance abuse awareness education should cover the following:

9.2.1.1. The Air Force's substance abuse policy, procedures, and program;

9.2.1.2. Types and effects of drugs;

9.2.1.3. Symptoms of drug use and effects on performance and conduct;

9.2.1.4. Relationship of the EAP (and ADAPT) to the drug-testing program; and

9.2.1.5. Relevant treatment, rehabilitation, and confidentiality issues.

9.2.2. Drug education activities may include but are not be limited to: Distribution of written materials, audio or video programs, group discussions and presentations, and computer-based training.

Chapter 10

SUBSTANCE ABUSE COUNSELING, ASSISTANCE AND REFERRALS

10.1. Overview

10.1.1. A combination of deterrence, detection, and rehabilitation will be used to ensure maximum workplace productivity free of alcohol or drug abuse. **(T-1).**

10.1.1.1. Early intervention is essential to the effective operation of this program and the successful rehabilitation of employees. Therefore, supervisors must be alert to behaviors that could indicate a substance abuse problem (prior to the occurrence of alcohol-related misconduct or providing an MRO-verified drug test positive sample), and advise employees that may voluntarily seek assessment and treatment referral services using the "Safe Haven" provision in **paragraph 5.3.** of this AFMAN. **(T-1).**

10.1.1.1.1. Rehabilitation shall be offered to all employees identified as having a substance abuse problem (defined as: alcohol misuse, a MRO-verified drug positive test result, and/or self-identified with a drug or alcohol problem), regardless of other administrative actions that may be pending or taken. **(T-0).** Alcohol misuse is defined as alcohol-related misconduct that has a direct impact on work productivity. Even when the removal of the employee from the Federal Service is proposed, the Air Force will offer, at a minimum, assessment and treatment referral services. **(T-0).** The employee will be provided a one-time mandatory assessment and referral appointment. **(T-0).** This assessment and referral appointment can be completed, at no cost to the employee, through the EAP or ADAPT, as space and services are available. At the employee's expense this mandatory assessment and referral appointment can also be conducted by other appropriate healthcare providers (for example, civilian healthcare providers). Follow-on counseling services, if needed, are available at the employee's expense. The follow-up counseling services can be provided through the installation EAP (if available), through the ADAPT program (on space available as fee for service), or other appropriate private health care service providers.

10.1.1.1.2. Employees may be allowed up to one hour (or more as necessitated by travel time) of duty time for each assessment and referral session up to a maximum of three hours during the assessment/referral phase of treatment. This applies only to assessment/referral and not follow-up treatment. Absences during duty hours for rehabilitation or treatment must be charged to the appropriate leave category according to law and Air Force leave regulations. **(T-1).**

10.1.1.1.3. Although the Air Force will encourage treatment and rehabilitation, it is the responsibility of every employee to refrain from substance abuse and take personal responsibility for rehabilitation when substance abuse problems occur.

10.2. Referral Process.

10.2.1. Supervisors will advise employees on the availability of services when there is any reason to believe that there may be a substance abuse problem. **(T-1).** This advice does not require an employee to admit to any problem, but merely offers assessment and referral to counseling and rehabilitation services available.

10.2.1.1. The ADAPT Program Manager provides employee referral guidance to supervisors. Supervisors must direct employees to report for initial assessment and referral for treatment any time drug use is MRO-verified and/or there is alcohol-related misconduct and then follow up to ensure completion. **(T-0).** Verification and validation may also arise through the employee's admission of substance abuse in addition to results from a substance abuse test authorized by this AFMAN. See **Attachment 13** for a sample notice to the employee.

10.2.1.1.1. Supervisors will notify the commander/director when an employee refuses to comply with a mandatory referral for counseling. **(T-1).** Air National Guard DDRPMs will notify the commander/director and Wing Director of Psychological Health. **(T-1).**

10.3. Employee Counseling and Assistance.

10.3.1. EAP contractor or ADAPT personnel provide and document initial substance abuse evaluation of all referred or self-identified employees. EAP or ADAPT personnel advise employees of options for substance abuse counseling and treatment through referral agencies. When describing referral options, EAP and ADAPT personnel should consider the nature and severity of the problem, location of the treatment, cost of the treatment, intensity of the treatment environment, availability of inpatient/outpatient care, and other special needs, such as transportation, family issues, and child care. Documentation of the initial assessment must be in accordance with AFI 44-121, *Alcohol Drug Abuse Prevention and Treatment Program and AFI 41-210, TRICARE Operations and Patient Administration Functions.*

10.3.1.1. EAP and ADAPT personnel ensure medical and mental health records of civilian personnel referred for assessment and/or treatment are updated to include: referral data, patient confidentiality and release of information, options for accepting or refusing treatment, assessment data, and appropriate treatment planning, case management, and/or clinical services provided.

10.3.1.2. If seen in ADAPT, information in the medical record should include a thorough initial note outlining the results of assessment, and employee consented to release/diagnostic procedures. Subsequent contacts should also be reflected in brief notes in medical records indicating the nature and outcome of services provided.

10.3.1.3. Changes in status, diagnosis, or treatment plan; initiation or change in medication; or termination of services should be thoroughly documented in the medical record.

10.3.1.4. Referral Options. Employees may use a wide variety of treatment options to include: community-based treatment programs (for uninsured or underinsured individuals), private providers covered by the employee's health insurance, or military benefits, if applicable.

10.3.1.4.1. Military-based counseling and/or treatment services may be provided on a space available, reimbursable basis depending on the eligibility status of the employee and in accordance with HHS/TRICARE guidelines. Employees are responsible for payment for these services which is generally accomplished by submitting claims to their Federal Health Benefits System health insurance provider.

10.4. Counselor Responsibilities.

10.4.1. The ADAPT or contract counselor counsels the employee on the scope of services available for counseling, assessment, and referral.

10.4.1.1. For the mandatory initial assessment appointment, the employee will be advised by way of documented initial informed consent that their supervisor will be notified that the employee attended the interview and the reporting and departing time of the employee. **(T-1).**

10.4.1.2. The employee is advised of what information will be disclosed to the supervisor at the beginning of the initial interview. **(T-1).** At that time the counselor also tells the employee that strict rules govern the disclosure of substance abuse counseling information and how those rules apply to the position the employee holds. **(T-1).**

10.4.1.2.1. The employee will be provided a copy of the form, Consent for Release of Patient Information During or After Treatment or Rehabilitation (**Attachment 12**). **(T-1).** The counselor will explain that the employee is not required to sign the release, but doing so will allow for the treatment provider to communicate progress back to the supervisor and the Civilian Rehabilitation Team. **(T-1).** The information may then be considered in deciding on the appropriateness of various actions including discipline and continued assignments to testing designated or other sensitive positions. Release of this information also furthers the rehabilitation process by ensuring that the supervisor is involved in the process and serves to justify the use of sick leave for treatment and counseling.

10.4.2. ADAPT personnel will advise employees that if they choose to use ADAPT services, a mental health record and a medical record will be established to ensure professional accountability and to facilitate on-going assessment of the quality, appropriateness, and progress of rehabilitation. **(T-1).**

10.4.3. Regardless of options selected, employees will be encouraged to authorize the release of information to appropriate management officials to facilitate support for their treatment. Employees will be advised that release of such information is not mandatory. **(T-1).**

DOROTHY A. HOGG
Lieutenant General, USAF, NC
Surgeon General

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Air Force Policy Directive 44-1, *Medical Operations,* 9 June 2016

Department of Defense Instruction 1010.09*, DoD Civilian Employee Drug-Free Workplace Testing Program,* 22 June 2012

Department of Defense Instruction 1010.04, *Problematic Substance Use by Department of Defense Personnel,* 20 February 2014

Executive Order 12564, *Drug-Free Federal Workplace*, 15 Sep 86

Air Force Instruction 33-360, *Publications and Forms Management*, 30 November 2016

Air Force Manual 33-363, *Management of Records,* 1 March 2008

Title 5, United States Code, Section §7301

Air Force Mission Directive 1-24, *Assistant Secretary of the Air Force (Manpower and Reserve Affairs)*

Air Force Mission Directive 1-48, *The Air Force Surgeon General*

Title 42 Code of Federal Regulations, Chapter 1, Subchapter A, Part 2.

42 United States Code, Subsection §12101

Air Force Instruction 44-197, *Military Drug Demand Reduction Program*

Air Force Instruction 44-121, *Alcohol and Drug Abuse Prevention and Treatment Program,* 8 July 2014

Public Law 99-570, *Anti-Drug Abuse Act of 1986*

Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Center for Substance Abuse Prevention, *Urine Specimen Collection Handbook for Federal Agency Workplace Drug Testing Programs*, October 1, 2017

Air Force Instruction 41-200, *Health Insurance Portability and Accountability Act (HIPAA),* 25 July 2017

Air Force Instruction 33-332, *Air Force Privacy and Civil Liberties Program,* 5 June 2013

Air Force Instruction 36-2907, *Unfavorable Information File (UIF) Program*, 26 November 2014

Title 10, United States Code, Section §7301, *Uniform Code of Military Justice*

Air Force Instruction 36-704, *Discipline and Adverse Actions,* 22 July 1994

Air Force Manual 34-310, *Non-appropriated Fund Personnel Program Management and Administration Procedures,* 28 September 2011

Air Force Instruction 91-204, *Safety Investigations and Report,* 27 April 2018

Title 29, United States Code, Part 1910.1030, Section §791

Privacy Act of 1974, 5 United States Code, Section §552a

Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Center for Substance Abuse Prevention, *Medical Review Officer Manual for Federal Workplace Drug Testing Programs*, 31 May 2014

Air Force Instruction 41-210, *TRICARE Operations and Patient Administration Functions,* 6 June 2012

Air Force Instruction 44-172, *Mental Health,* 13 November 2015

Air Force Instruction 36-901, *Civilian Senior Executive Management,* 23 January 2012

Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Center for Substance Abuse Prevention, *Model Plan for a Comprehensive Drug-Free Workplace Program*, Printed 1989, Reprinted 1990

Prescribed Forms

None

Adopted Forms

Air Force Form 847, *Recommendation for Change of Publication*

Drug Testing CCF

Abbreviations and Acronyms

ADAPT—Alcohol and Drug Abuse Prevention and Treatment

AFI—Air Force Instruction

AFP—Air Force Publication

AFPC—Air Force Personnel Center

AFMAN—Air Force Manual

AFMOA—Air Force Medical Operations Agency

CCF—Federal Drug Testing CCF

CPS—Civilian Personnel Section

DoD—Department of Defense

DoDI—Department of Defense Instruction

DDR—Drug Demand Reduction

DDRPM—Drug Demand Reduction Program Manager

DRU—Direct Reporting Unit

DTPAM—Drug Testing Program Administrative Manager

EAP—Employee Assistance Program

FOA—Field Operating Agency

GSU—Geographically Separated Unit

HHS—Department of Health and Human Services

HR—Human Resource

JA—Judge Advocate

MAJCOM—Major Command

MRO—Medical Review Officer

OCR—Office of Collateral Responsibility

OPR—Office of Primary Responsibility

SAF/MR—Assistant Secretary of the Air Force for Manpower and Reserve Affairs

SecAF—Secretary of the Air Force

SG—Surgeon General

SJA—Staff Judge Advocate

TDP—Testing Designated Position

TDY—Temporary Duty

Terms

Administrative Action—An action taken by management which is not considered to be disciplinary in nature. Examples include an employee placed on leave with pay, detailing an employee to another position or reassigning and employee.

Air Force Personnel Center—The Air Force Personnel Center is located at Randolph AFB, TX, and manages various civilian personnel processes, to include maintaining all active civilian Official Personnel Folders.

Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program—The program provides prevention, education, assessment, referral, and treatment services to employees, and assists HR in the training of supervisory personnel to facilitate early identification and referral of troubled employees.

Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program Manager—The individual designated by the Medical Treatment Facility commander or director with overall responsibility for coordinating base-level ADAPT services.

Applicant—Any individual tentatively selected for employment with the Air Force, to include any individual in the Air Force who has tentatively been identified for placement into a TDP.

Civilian Employee—A non-military DoD employee paid from appropriated or non-appropriated funds.

Civilian Personnel Section—The functional element in the Mission Support Squadron with program responsibility for civilian personnel management and administration.

Civilian Rehabilitation Team—Chaired by the ADAPT Program Manager, this team establishes the treatment framework and monitors progress of individuals identified with a substance abuse problem.

Collector—General designation referring to the DDRPM/DTPAM.

Consent Testing—An employee may voluntarily consent to provide a single specimen.

Commander—For the purpose of this guidance, the commander refers to the military commander or civilian director of the affected military organization.

Counseling—Generally, a service consisting of individual and/or group meetings with the goal of helping the employee to better understand the nature of his/her problems and options to eliminate or minimize their impact on personal, social, and occupational functioning.

Drug Demand Reduction Program Manager (DDRPM)—Individual responsible for oversight of the installation's military/civilian drug testing program.

Department of Health and Human Services (HHS) Guidelines—The Mandatory Guidelines for Federal Workplace Drug Testing Programs.

Disciplinary Action—A removal, suspension, furlough for 30 days or less, or reduction in grade or pay. These actions do not include those resulting from reduction in force.

Drug Testing Program Administrative Manager (DTPAM)—individual hired or appointed to administer collection, processing and shipping of specimens and safeguarding of applicable information pertaining to the drug testing program.

Employee Assistance Program (EAP)—Counseling programs that offer assessment, short-term counseling, and referral services to employees for a wide range of drug, alcohol, and other related problems that affect employee job performance. EAPs are responsible for referring employees who are abusing drugs for rehabilitation and for monitoring employees' progress while in treatment.

Escort—The collector or an individual other than collector can serve as an escort. An individual selected to escort the employee from the collection point to the restroom for the purposes of ensuring **no opportunity to prepare, circumvent, or adulterate the test** specimen from the time the specimen is provided until the collector checks the temperature. The escort should allow the employee visual privacy to provide the urine specimen. Both the escort and the employee must maintain visual contact of the specimen from the time the employee has completed urinating in the collection container and comes out of the restroom to the time the specimen is transferred to the collector. The temperature must be checked by the collector within four minutes after the specimen is provided. At no point shall the escort take custody of the specimen and read the temperature unless the collector is serving as an escort.

Gender Identity-Sex—Defined in Executive Order 14168 as an individual's immutable biological classification as either male or female.

Human Resources (HR) Office—The functional element in the Force Support Squadron (FSS) with program responsibility for non-appropriated fund personnel management and administration.

Human Resource (HR) Representative—The Civilian Personnel Officer or the Supervisor over the Civilian Personnel Element (Appropriated Funds employees); the HROr (Non-Appropriated Funds employees).

Illicit Drug—A controlled substance included in Schedules I through V, as defined by section 802(6) of Title 21 of the United States Code, the possession of which is unlawful under chapter 13 of that Title. The term illicit drug includes prescription drugs that are not taken pursuant to a valid authorized prescription. The term illicit drug does not mean the use of a controlled substance as prescribed by medical personnel pursuant to a valid prescription or other uses authorized by Federal law.

Laboratory Confirmed Positive Test Result—A test result that has been screened positive by an FDA approved immunoassay test and confirmed by Gas Chromatography/Mass-Spectrometry or other confirmatory tests approved by HHS.

Major Command (MAJCOM)—A major subdivision of the Air Force that is assigned a major part of the Air Force mission. A MAJCOM is directly subordinate to Headquarters US Air Force. MAJCOMs are organized on a functional basis in the United States and a geographic basis overseas. They organize, administer, equip and train their subordinate elements for the accomplishment of assigned missions. In descending order of command, elements of MAJCOMs include numbered Air Forces, wings, groups, squadrons and flights. For the purposes of this manual, Air National Guard and Air Force Reserve Commands are considered MAJCOM equivalents.

Management Officials—Employee required or authorized by the Air Force to formulate, determine, or influence the policies of the Air Force.

Medical Review Officer (MRO)—A licensed physician with the appropriate training to interpret and evaluate positive test results.

Mental Health Clinic—The functional element in the Medical Group or Squadron that provides initial assessment and referral services for employees experiencing problems with substance use/abuse. Employees may be provided counseling and treatment services through the Mental Health Clinic on a space-available, reimbursable basis, if they meet eligibility requirements outlined under the Federal Health Benefits System or other applicable medical health insurance.

Medical Review Officer (MRO)-verified Positive Drug Test Result—A MRO-verified test result that has been reviewed by the MRO and determined to be positive following the protocol established by HHS.

Mishap—An unplanned occurrence, or series of occurrences, that results in damage to DoD property; occupational illness to DoD personnel; injury to on- or off-duty DoD military personnel; injury to on-duty DoD civilian personnel; or damage to public or private property, or injury or illness to non-DoD personnel, caused by DoD activities. Mishaps are classified by total direct mishap cost and the severity of injury/occupational illness.

Observer—Before conducting a direct observed collection, the collector must make the supervisor aware that a situation exists warranting a direct observed collection and explain to the employee why a direct observed collection is being conducted. The collector or an individual could serve as observer as long the observer has the same sex as the employee. The individual serving as the direct observer enters the restroom with the employee. The observer must directly watch urine go from the employee's body into the collection container. The observer must never touch or handle the collection container unless the collector is serving as observer. After the employee has completed urinating into the collection container, the employee and the observer leave the rest room. The employee hands the collection container directly to the collector. The observer must maintain visual contact of the collection container until the employee hands the container to the collector.

Office of National Drug Control Policy—Executive Office of the President responsible for establishing the National Drug Control Policy.

Privacy Act Release—A statement signed by the employee who enters a counseling or treatment program either on-site, off-site, or in residence. This allows the release of records controlled under the *Privacy Act*. Sample statements for Consent for Release of Patient Information During or After Treatment or Rehabilitation and Release Memorandum are found in the Attachments.

Random Testing—A system of drug testing imposed in the absence of any suspicion that a particular individual is engaging in illicit drug use. Selecting employees for drug testing on the basis of a desire to test particular individual employees is prohibited under provisions of random drug testing.

Reasonable Suspicion—Reasonable suspicion is an articulable belief that an employee has used an illicit drug, drawn from specific and particularized facts and reasonable inferences from those facts, and that the illicit drug will be found in the specimen of the person tested. A more detailed definition is found in **paragraph 3.1.5**.

Rehabilitation—A process of either, on-site or off-site, inpatient or outpatient, the goal of which is to eliminate substance abuse and restore the employee to a productive status within his/her work area. This process includes the learning of skills to help the person remain substance-free and should include a period of aftercare or continuing care, during which the person may be allowed to return to full duties.

Reprimand—A reprimand is a severe disciplinary action in the form of a written statement of censure given to an employee for misconduct, delinquency, and/or repeated lesser offenses.

Responsible Person—Individual within the drug testing laboratory who is responsible for all analytical aspects of drug testing.

Sensitive Position Categories—The designation of sensitive refers to one or more of the following categories used to identify TDPs: (1) a position that has been designated special sensitive, critical sensitive, or non-critical sensitive; (2) an employee who has been granted access to classified information according to section 4 of Executive Order 12564; (3) law enforcement officers as defined in Title 5 United States Code 8331 (20) and 8401(17); (4) other positions that the SecAF determines involve law enforcement, national security, the protection of life and property, public health or safety, or other functions requiring a high degree of trust and confidence; (5) individuals serving under Presidential Appointments.

Supervisor—An employee having authority to hire, direct, assign, promote, reward, transfer, furlough, layoff, recall, suspend, discipline, or remove other employees, to adjust their grievances, or to effectively recommend such action, if the exercise of the authority is not merely routine or clerical in nature, but requires the consistent exercise of independent judgment.

Supervisor's Employee Work Folder—A working file maintained by the supervisor containing copies of working documents such as performance appraisal information, safety briefings, leave information, and drug testing notices. This file is authorized by Air Force Pamphlet 36-106, *Supervisor's Records*. The file is also commonly referred to as the 971 file.

Testing Designated Positions (TDPs)—Positions described in Section 7(d) of Executive Order 12564 that are designated by the Air Force. TDPs are characterized by their critical safety or security responsibilities as they relate to the mission of the DoD component. The job functions associated with these positions have a direct and immediate impact on public health and safety, the protection of life and property, law enforcement, or U.S. national security. These positions require the highest degree of trust and confidence. All positions that require that the incumbent possess a security clearance of "Top Secret" or higher may be designated for testing.

Trusted Agent—An individual appointed by commanders/directors to receive and maintain rosters of individuals (notification letter from the DDRPM/DTPAM) selected for urinalysis testing. The Trusted Agent is responsible for ensuring supervisors notify individuals selected for urinalysis testing and identifying those individuals unavailable for testing. The Trusted Agent must be a member of the Commander's Support Staff or a director's Commander's Support Staff equivalent. If the commander/director does not have a Commander's Support Staff or Commander's Support Staff equivalent, the commander/director must identify and appoint a Trusted Agent in writing.

Attachment 2

AIR FORCE APPROPRIATED AND NONAPPROPRIATED FUND EMPLOYEE DRUG TESTING DESIGNATED POSITIONS

A2.1. The Air Force has identified specific categories of positions whose incumbents will be subject to drug testing according to the Air Force Civilian Drug Testing Program. These positions have duties and responsibilities consistent with the parameters established by the Executive Order, guidance issued by the Office of the National Drug Control Policy, and supplementary guidance issued by the Interagency Coordinating Group Executive Committee and by the Department of Justice, Civil Division and the DoD Directive 1010.9, "*Department of Defense Civilian Employee Drug Abuse Testing Program*." The Air Force has categorized positions as either presumptive testing designated positions, mandatory testing designated positions, with local authority to designate additional positions meeting the criteria; Preferred testing designated position, mandatory testing designated position but requiring the Deputy Chief of Staff Manpower, Personnel and Services written approval to designate additional positions; or discretionary testing designated position, which require Air Force to consult with DoD before approving testing designated positions under this category.

A2.2. Presumptive positions are identified by general criteria and specific occupational series/codes when it is known that those positions meet the general criteria. Preferred positions are identified by specific occupational series/codes. Positions in the applicable series/codes identified below as Presumptive and Preferred will be testing designated position even if the employees are leaders or supervisors.

A2.3. Positions identified as testing designated positions under these procedures will be documented **(T-0).** on the position description with the statement "*This is a drug testing designated position. The incumbent is subject to random testing for drug use."*

A2.4. Requests for revisions to testing designated positions shall be forwarded from installation personnel offices to Air Force Personnel Center Integration Division to the Deputy Chief of Staff Manpower, Personnel and Services. **(T-0).** The Deputy Chief of Staff Manpower, Personnel and Services shall send AFMOA/SGB, Air Force Legal Operations Agency/Labor Law Field Support Center, and the Air Force Administrative Law Division an information copy. The Deputy Chief of Staff Manpower, Personnel and Services will review the request and forward Air Force approved requests to the Assistant Secretary of Defense for Health Affairs and/or the DoD Drug Coordinator for Drug Enforcement Policy and Support for DoD approval. **(T-0).**

A2.5. Request packages should contain a statement describing the proposed changes, the official position descriptions or a summary of the duties performed by the positions being recommended for drug testing, and a written justification for each proposed testing designated position. **(T-0).** In some cases group justifications may suffice for positions that share common duties and fall under the same testing designated position category.

A2.6. The Assistant Secretary of Defense for Health Affairs is responsible for the establishment of all test designated positions in coordination with HHS and the Department of Justice. **(T-0).**

A2.7. Category I – Presumptive Included testing designated position.

Category I positions are those that meet the criteria for a presumptive testing designated positions. Positions that meet the criteria for Category I coverage are presumed to meet the

Office of National Drug Control Policy criteria and must be identified as testing designated positions even when they are not specifically identified in this plan by occupational series/code. **(T-0).**

A2.8. Type I: Employees who carry firearms on a routine or recurring basis. At a minimum, positions in the following occupational series/codes will be reviewed and designated as appropriate: **(T-1).**

0083, Police

0085, Security Guard

1712, Training Instructor, Marksmanship

1811, Criminal Investigating

***Justification*:** These positions are required to carry firearms on a daily or regular basis. There is well developed law and a clear public interest in testing employees who are required to carry firearms on a daily or regular basis. Furthermore, guidance from Office of National Drug Control Policy requires such positions to be presumptive testing designated positions.

A2.9. Type 2: Motor vehicle operators. At a minimum, positions in the following occupational series/codes will be testing designated positions: **(T-1).**

0081, Fire Protection and Prevention (driving duties)

5701, General Mobile Equipment Operating

5703, Motor Vehicle Operating

5704, Forklift Operator

5705, Tractor Operator

5767, Airfield Clearing Equipment Operating

In addition, positions in Recreation and Child/Youth Development that regularly drive passengers on tours and field trips in the following occupational series/codes will be testing designated positions: **(T-1).**

0188, Recreation Specialist

0189, Recreation Aid and Assistant

1701, General Education and Development

1702, Education and Training Technician

Justification: The Air Force elects to designate all positions with driving duties for testing, regardless of number of passengers, cargo, size of vehicle, and limitations to driving on base only. Typical Air Force installations are highly concentrated areas of hazardous and explosive material, children in housing areas, and a significant number of vehicles carrying passengers such as school buses and aircrew vehicles. The safety risk to an Air Force installation in operation of light vehicles without passengers or hazardous materials is as great as that involving vehicles with a certain number of passengers or specifically carrying hazardous material.

A2.10. Type 3: Aviation flight crewmembers and air-traffic controllers. Positions in the following occupational series/codes will be testing designated positions: **(T-1).**

0301, Air Commander

2152, Air Traffic Control

2181, Aircraft Operations

2183, Air Navigation

2185, Aircrew Technician

Justification: The above referenced series/codes represent positions that are either aviation flight crew members or air traffic controllers. There is well developed law and a clear public interest in testing positions that are aviation flight crew members or air traffic controllers.

Furthermore, guidance from the Office of National Drug Control Policy requires such positions to be presumptive testing designated positions.

Railroad operating crews

Positions in the following occupational series/code will be testing designated positions: **(T-1).**

5737, Locomotive Engineering

Justification: The above referenced series/code presents positions that serve as railroad operating crews. There is well developed law and a clear public interest in testing railroad operating crews. Furthermore, guidance from the Office Of National Drug Control Policy requires such positions to be presumptive testing designated positions.

A2.11. Category II -- Preferred testing designated position. Category II positions require the Air Force to consult with ASD (HA) and the DoD Coordinator for Drug Enforcement Policy and Support (CDEP&S) prior to identification as a testing designated position; therefore, installations are prohibited from identifying any position which is not specifically identified in this Attachment by occupational series/code. These positions include those meeting the criteria established in the Interagency Group Committee memorandum dated 2 August 1999, *Guidance for Selection of Testing Designated Positions*, prepared by Office Of National Drug Control Policy for preferred testing designated position, discretionary designations, and specifically disfavored positions. **(T-1).** These positions **may not** be designated as a testing designated position without specific authorization from the Deputy Chief of Staff Manpower, Personnel and Services. **(T-1).**

A2.12. Type 1: Health and safety responsibilities involving a potentially dangerous instrument or machine. Employees authorized to carry firearms on less than a routine or recurring basis (in other words, in emergencies). Positions in the following occupational series/codes will be testing designated positions: **(T-1).**

0083, Police

0085, Security Guard

1811, Criminal Investigating

Justification: Authorization to carry firearms involves a clear and substantial risk to personal and public safety.

Railroad employees engaged in safety sensitive tasks:

Positions in the following occupational series/code will be testing designated positions: **(T-1).**

5736, Braking-Switching and Conducting

Justification: This work involves coordinating the movement of locomotives and trains and poses a clear and substantial safety risk.

Aviation personnel including attendants, instructors, flight testing personnel, dispatchers, maintenance, security and safety inspectors.

Positions in the following occupational series/codes will be testing designated positions: **(T-1).**

856, Electronics Technician, involving maintenance of air traffic control equipment

1712, Training Instructor, Flying Training

1815, Air Safety Investigating

1825, Aviation Safety

2102, Transportation Clerk and Assistant, involving aircraft dispatching

2150, Transportation Operations, involving airfield management work

2151, Dispatching, involving aircraft dispatching

2154, Air Traffic Assistance

2892, Aircraft Electrician

3105, Fabric Working, involving flight survival equipment

3703, Welder, involving aircraft

3806, Sheet Metal Mechanic, involving aircraft

3700, Metal Processing Family, positions not covered above but directly involved in aircraft maintenance

4818, Aircraft Survival Flight Equipment Repairing

5413, Fuel Distribution System Operating, involving aircraft refueling

5485, Aircraft Weight and Balance Operating

6652, Aircraft Ordnance Systems Mechanic

6968, Aircraft Freight Loading

7010, Parachute Packing

8268, Aircraft Pneudraulic Systems Mechanic

8602, Aircraft Engine Mechanic

8675, Liquid Fuel Rocket Engine Mechanic

8810, Aircraft Propeller Mechanic

8840, Aircraft Mechanical Parts Repairing

8852, Aircraft Mechanic

8862, Aircraft Attending

8863, Aircraft Tire Mounting

8882, Airframe Test Operating

2601, General Electronic Equipment Installation and Maintenance, performing aircraft maintenance duties

2602, Electronic Measurement Equipment positions

2604, Electronics Mechanic, involving avionics and air traffic control equipment

2610, Electronic Integrated Systems Mechanic, involving avionics and air traffic control equipment

3359, Instrument Mechanic involving maintenance and repair of instruments installed on aircraft or air traffic control equipment

5401, General Industrial Equipment Operation, performing aircraft maintenance

5413, Fuel Distribution System Operating, involving work on military aircraft fuel distribution systems

8801, General Aircraft Overhaul positions

Justification: Direct maintenance of aircraft, aircraft subsystems, and air traffic control equipment; technical work in support of air traffic control operations; aviation safety investigating; and training of air crews all involve clear and substantial responsibilities for safety of flight crews as well as the general public.

A2.13. Type 2: Presidential appointees requiring Senate confirmation (Executive Service Pay Plan). The following Air Force positions are testing designated:

The Secretary of the Air Force

The Under Secretary of the Air Force

The Assistant Secretary of the Air Force, Acquisition

The Assistant Secretary of the Air Force, Financial Management and Comptroller

The Assistant Secretary of the Air Force, Manpower and Reserve Affairs

The Assistant Secretary of the Air Force, Installations, Environment, and Logistics

The Air Force General Counsel

Justification: There is clear public interest in having senior Air Force leadership positions designated for testing.

A2.14. Type 3: Front line law enforcement personnel with proximity to criminals, drugs, or drug traffickers. Positions in the following occupational series/codes will be reviewed and designated as appropriate. **(T-1).**

0083, Police

1802, Criminal Investigative Assistants in Office of Special Investigations with access to evidence rooms

1811, Criminal Investigating

Justification: Police and Criminal Investigators, if not covered under the firearms category, are regularly involved in the investigation of drug-related crimes. The Criminal Investigative Assistants with access to evidence rooms or chain-of-custody responsibility regularly have access to drugs confiscated in the investigation of drug-related crimes.

A2.15. Type 4: Drug Rehabilitation employees providing direct client care. Positions in the following occupational series/codes will be reviewed and designated as appropriate. **(T-1).**

0101, Social Sciences

0180, Psychology

0181, Psychology Aid and Technician

0185, Social Work

0602, Medical Officer

0610, Nursing

Justification: Direct client care to known illicit drug users requires employee assistance personnel to be free of illicit drug use to avoid compromise of the spirit and intent of the drug testing program and to ensure that the care given is of the highest quality. Drug rehabilitation duties are inconsistent with illicit drug use.

The Air Force has consulted with and obtained the concurrence of the Office of National Drug Control Policy to designate the following specific positions as testing designated position. Additional testing designated position may be added only after petitioning the Deputy Chief of Staff Manpower, Personnel and Services.

A2.16. Type 5: Personnel having access to truly sensitive information, in other words, national security material. Positions requiring routine access to truly sensitive information that has the potential to damage national interests if compromised will be identified as testing designated positions. **(T-1).** All positions and personnel requiring access to Top Secret or higher are testing designated. **(T-1).** Positions requiring access to Secret, not meeting criteria for other Categories or Types of positions in this Attachment must be approved for testing designation by the Assistant Secretary of the Air Force for Manpower and Reserve Affairs. **(T-1).** Request should be sent to the Recruitment and Workforce Shaping Division workflow box at **usaf.pentagon.af-a1.mbx.af-a1cp-workflow@mail.mil**. **(T-1).** Requests must include the rationale for testing and justification. **(T-1).** The justification must include: **(T-1).**

1. A statement/description of possible negative consequences if an incumbent in that job were to abuse drugs. The statement must contain a clear nexus between the employee's duties and the feared harm/damage to the organization or other personnel for each position.

2. A copy of a current and properly executed job description must be provided, along with a schematic of the chain of supervision. The total number of employees covered will be provided. If the positions are being established or a change in the number of employees is expected, it must be so stated. Under no circumstances should the inclusion of a small number of employees be requested when rapid growth in that job class is forecast.

3. MAJCOM/Director of Personnel and Judge Advocate approval for each position under review prior to submission to the Deputy Chief of Staff Manpower, Personnel and Services.

Justification: The use of illicit drugs demonstrates a disregard for the laws of the United States, poor judgment, and exposes the individual to risks of extortion, thereby rendering such individuals unsuitable for continued access to sensitive information. The Air Force elects to identify all positions with routine access to truly sensitive national security information as testing designated positions. Such positions involve information that if disclosed could seriously damage national security interests and jeopardize the lives of members of the United States armed services and allies. Positions having access to official use, confidential or personally identifying information, not meeting the truly-sensitive criteria, will not be designated. Additionally, positions will not be designated for having "public trust" requirements or generalized requirements of integrity, honesty, or responsibility.

A2.17. Type 6: Positions covered by the Personnel Reliability Program. All positions involving access to nuclear weapons or materials are covered by the Personnel Reliability Program as described in AFMAN 13-501, *Nuclear Weapons Personnel Reliability Program*. These positions are coded as part of the civilian record in the data system as code A - critical position for nuclear weapons duty, or code D - controlled position for nuclear weapons duty.

Justification: Positions involving access to nuclear weapons pose special risks to the national security and safety. The consequences of any mishap are extraordinarily high and employees must therefore be free of any substances, including but not limited to illicit drugs that could impair judgment or performance.

A2.18. Category III -- Discretionary testing designated position. Category III positions require the Air Force to consult with DoD and the Interagency Coordinating Group Executive Committee prior to identification as a testing designated position; therefore, installations are prohibited from identifying any position which is not specifically identified in this Attachment by occupational series/code. These positions **may not** be designated as a testing designated position without specific authorization from the Deputy Chief of Staff Manpower, Personnel and Services. **(T-1).**

A2.19. Type 1: Protection of life and property. Positions in the following occupational series/codes will be testing designated positions: **(T-1).**

0081, Fire Protection and Prevention

2151, Dispatching, involving dispatch of emergency equipment such as firefighting and rescue equipment.

Justification: Firefighting and rescue work is clearly and directly involved with personal and public safety.

A2.20. Type 2: Health occupations providing direct patient care. Positions in the following occupational series/codes:

0602, Medical Officer, clinical work

0603, Physician's Assistant

0610, Nurse

0620, Practical Nurse

0621, Nursing Assistant

0631, Occupational Therapist

0633, Physical Therapist

0636, Rehabilitation Therapy Assistant

0642, Nuclear Medicine Technician

0644, Medical Technologist

0645, Medical Technician

0646, Pathology Technician

0647, Diagnostic Radiological Technologist

0648, Therapeutic Radiological Technologist

0649, Medical Instrument Technician

0651, Respiratory Therapist

0660, Pharmacy

0661, Pharmacy Technician

0662, Optometrist

0664, Restoration Technician

0665, Speech Pathology and Audiology

0667, Orthotist and Prosthetist

0668, Podiatrist

0680, Dental Officer, Clinical Work

0681, Dental Assistant

0682, Dental Hygienist

0601, General Health Science, if the work involves direct patient care

0640, Health Aid and Technician, all Paramedic and Emergency Medical Technician work and any other work involving direct patient care

0699, Medical and Health Student Trainee, if the work involves direct patient care

1320, Chemistry, if the work involves medical diagnostic testing

Justification: Direct patient care has clear and substantial impact on patient and public health and safety.

A2.21. Type 3: Personnel working with armament, explosives, and hazardous materials. Positions in the following occupational series/codes will be testing designated positions: **(T-1).**

6502, Explosives Operating

6505, Munitions Destroying

6511, Missile/Toxic Materials Handling

6517, Explosives Test Operating

6605, Artillery Repairing

6606, Artillery Testing

6610, Small Arms Repairing

6641, Ordnance Equipment Mechanic

6656, Special Weapons Systems Mechanic

6913, Hazardous Waste Disposing

2131, Freight Rate Series, involved with packing and crating of munitions

4604, Wood Worker, involved with packing and crating of munitions

5700 Transportation/Mobile Equipment Operation Family

6907, Materials Handler

Justification: Work with armament, explosives, and hazardous materials poses substantial risk to public safety.

A2.22. Type 4: Personnel working with Biological Select Agents and Toxins. Positions in the following occupational series/codes and job titles will be testing designated positions: **(T-1).**

0401, Biological Science - Biologist	Lab Director/Senior Scientist
0401, Biological Science - Biologist	Senior Research Scientist
0403, Microbiologist	Associate Research Microbiologist

Justification: Unsupervised access to biological select agents and toxins; Secret or Top Secret Clearance required.

A2.23. Type 5: Health and safety responsibilities involving a potentially dangerous instrument or machine. Positions in the following occupational series/codes and job titles will be testing designated positions: **(T-1).**

3816, Metal Hobby Shop Instructor

4605, Woodworking Instructor

Justification: The Air Force elects to designate as testing designated positions all non-appropriated fund positions with duties including operation, maintenance and instruction using woodworking and metalworking machinery. Failure to maintain sobriety while using these types of machines can easily result in serious bodily harm and loss of life.

Attachment 3

INSTRUCTIONS FOR COMPLETING THE DRUG TESTING CCF

A3.1. The following instructions are in accordance with procedures established by the Department of HEALTH AND HUMAN SERVICES *Mandatory Guidelines for the Federal Workplace Drug Testing Program*.

NOTE: Use ballpoint pen, press hard and check all copies for legibility.

A3.2. STEP 1. Completed by Collector or Employer Representative.

If the information in STEP 1 has not been completed, DDRPM/DTPAM completes STEP 1 parts A-G.

Part A. Employer Name, Address and identification number: This should be the name and address of the submitting unit.

Part B. Medical Review Officer Name, Address and Telephone Number.

Part C. Employee identification number: Enter the employee's DoD Identification Number. Refusal to provide employee identification number must be annotated in STEP 2, DTPAM's REMARKS section.

Part D. Testing Authority: Mark appropriate box.

Part E. Reason for Test: Mark the appropriate box.

Part F. Tests to be Performed: This should be pre-marked. If not, indicate testing for marijuana (metabolite), cocaine, amphetamines (amphetamine and methamphetamine), methylenedioxymethamphetamine, methylendioxyamphetamine, opiates (codeine, morphine, and heroin metabolite), synthetic opioids (oxycodone, oxymorphone, hydrocodone, and hydromorphone), and phencyclidine.

Part G. Collection Site Address: This is the address of actual site of collection. Also annotate the phone number and fax number of the collector.

A3.3. STEP 2. Completed by Collector.

Upon receiving the specimen from the employee, check the specimen temperature. This must be accomplished within four (4) minutes. **(T-0).** Check block marked Yes if temperature is within range. If specimen temperature is not within range, check block marked No. If this was an observed collection, indicate by marking the box and provide a statement in the remarks section.

A3.4. STEP 3.

a. Secure cap on the specimen bottle (containing 30 ml of urine) and affix specimen bottle seal labeled – A over the cap and down the side of the specimen bottle and secure cap on the specimen bottle (containing at least 15 ml of urine) and affix specimen bottle seal labeled – B over the cap and down the side of the split specimen.

b. Record the date on the specimen bottle seals.

c. Instruct the employee to initial the specimen bottle seals.

d. Instruct the employee to complete STEP 5 on Copy 2 (Medical Review Officer Copy). Instruct the employee to read the certification statement. Employee refusal to sign must be annotated in STEP 2, Remarks Section:

(1) Employee must sign the Federal Drug Testing CCF **(T-0).**

(2) Employee must print his/her name (First, Middle Initial, Last) **(T-0).**

(3) Employee must date the form (Month/Day/Year) **(T-0).**

(4) Employee must provide a daytime phone number **(T-0).**

(5) Employee may provide an evening phone number; however the Air Force is not requiring that he/she does so.

(6) Employee must provide a date of birth (Month/Day/Year) **(T-0).**

e. Upon completion, check employee entries and return to Copy 1.

A3.5. STEP 4. Chain of Custody - Initiated by Collector and Completed by Laboratory.

a. After returning to Copy 1, go to STEP 4.

b. DDRPM/DTPAM completes collection certification section by printing and signing his/her name, recording the date and the time of collection. Be sure to circle AM or PM.

c. In the box marked Specimen Bottle(s) Released To: print the name of the delivery service transferring the specimen to the testing laboratory (for example, U.S. Postal Service).

COMPLETING THE COLLECTION PROCESS

a. Upon completing STEP 4, give the employee his/her copy, Copy 5, of the Federal Drug Testing CCF.

b. Place the specimen bottle and Copy 1 of the Federal Drug Testing Custody Form in the shipping container.

c. Secure the shipping container. On the shipping container seal, record your initials and the date.

d. Send Copy 2 directly to the Medical Review officer at the 0667 orthotis website: <**https://safe.amrdec.army.mil/safe/welcome.aspx**>. Do not send to the laboratory.

e. Retain Copy 3 for your records.

f. Forward Copy 4 to the employer Human Resource Office. Do not send to the laboratory.

A3.6. STEP 5a. Primary Specimen Test Results - Completed by the Primary Laboratory. This step is completed by the laboratory after testing the specimen.

The laboratory must report the result as either NEGATIVE, POSITIVE for a specific drug, or Rejected for Testing Adulterated, Substituted or Invalid Result. **(T-0).** For Rejected for Testing, the laboratory must document the reason by providing an appropriate comment on the REMARKS line in Step 5a. **(T-0).**

When a specimen is received with a discrepancy, the laboratory contacts the collection site to determine if the discrepancy can be recovered. If the collection site can provide a Memorandum for Record to recover the discrepancy, the laboratory is permitted to test the specimen, but must

hold the results until the memorandum for record is received. **(T-0).** If the discrepancy cannot be recovered by a memorandum for record from the collection site, the laboratory may not test the specimen and must indicate the reason on the REMARKS line. This notification also alerts the collection site that an error has been made and that the collection site must implement corrective action to prevent the recurrence of the discrepancy.

The laboratory includes a copy of the memorandum for record with its report to the Medical Review Officer to ensure that the Medical Review Officer is aware that the discrepancy has been recovered. **(T-0).**

Attachment 4

SAMPLE LETTER - NOTICE OF DRUG TESTING AS A CONDITION OF EMPLOYMENT FOR NON-AIR FORCE EMPLOYEES ACCEPTING A TESTING DESIGNATED POSITION

(APPROPRIATE LETTERHEAD)

(*Date*)

MEMORANDUM FOR (*Tentatively Selected Applicant Name - Non-Air Force Employee Accepting a Testing Designated Position*)

FROM: Civilian Personnel Flight/Human Resource Office

SUBJECT: Notice of Drug Testing as a Condition of Employment

1. The position of (*Title, Series, and grade*) for which you have been tentatively selected is designated by the Air Force as a testing designated position under the Air Force Civilian DDR Program. For the purpose of this program, testing designated positions are those positions sufficiently critical to the Air Force mission or to the protection of public safety to warrant screening to detect the presence of drugs as a job-related requirement. Illicit drug use by employees in sensitive positions presents a clear threat to the mission of the Air Force, national security, or public safety.

2. To receive further consideration for this testing designated position, you must sign this notice and agree to submit to urinalysis testing, if requested, in order to determine your fitness for appointment, prior to the effective date of the appointment (or within three days of entry on duty where the commander/director has authorized delayed testing). The drugs included in the routine test panel are marijuana (metabolite), cocaine, amphetamines (amphetamine and methamphetamine), methylenedioxymethamphetamine, methylendioxyamphetamine, opiates (codeine, morphine, and heroin metabolite), synthetic opioids (oxycodone, oxymorphone, hydrocodone, and hydromorphone), and phencyclidine.

3. If you sign this notice and then refuse to furnish a urine specimen as requested, or if illicit drug use is detected through a Medical Review Officer verified/validated positive test result, the position offer will be withdrawn. In the event your applicant drug test is deferred until after you report for duty and you either refuse to furnish a urine specimen as requested, or illicit drug use is detected, your employment will be terminated, as your employment was contingent upon successfully passing a drug test. You are given the opportunity prior to the urine test to provide medical documentation detailing authorized prescription medication you are taking. Additionally, if a laboratory verified positive test result is received, you will be given an opportunity to submit medical documentation to the Medical Review Officer to support your legitimate use of prescription drugs prior to the validation of the test results.

4. If you are appointed to this testing designated position, the following employment requirements apply:

(a) It will be mandatory that you refrain from the use of illicit drugs.
(b)You will be subject to urinalysis testing under the following circumstances: (1) on an unannounced random basis; (2) when there is reasonable suspicion that you have used illicit drug; (3) as part of a safety/mishap investigation; or (4) as part of or as a follow-up to counseling or treatment for illicit drug use.
(c) After appointment, if you refuse to furnish a urine specimen, you will be subject to disciplinary action ranging from reprimand to removal.
(d) After appointment, if illicit drug use is detected through a Medical Review Officer verified/validated positive test result, you will be subject to disciplinary action, including removal from Federal Service. If you are found to have used an illicit drug, you will be reassigned from the testing designated position. Additionally, management will propose action to remove you from Federal Service if you fail to agree to participate in a counseling or treatment program. However, even if you agree to participate in and subsequently complete a counseling or treatment program, you may still be subject to disciplinary action, including removal, if warranted by the facts of your situation. Your agreement to participate in a counseling or treatment program will be one of the factors considered in determining the level of discipline or disciplinary action imposed.

5. You will be allowed visual privacy while providing the urine specimen unless there is reason to believe the specimen will be or has been altered. The collection, handling, and testing of the urine specimen will be conducted under chain of custody procedures established by the Department of Health and Human Services (HHS) to ensure accuracy of the test result. The quality of testing procedures is tightly controlled to ensure results will be handled with the maximum respect for individual confidentiality.

[SIGNATURE BLOCK]
AUTHORIZED CIVILIAN PERSONNEL FLIGHT SPECIALIST

I acknowledge receipt of the letter and have read its contents. I understand that I may be selected for random drug testing. I understand that I will be subject to drug testing when there is reasonable suspicion to believe that I am under the influence of drugs or as a result of a safety mishap. I also understand that refusal to submit to testing will result in initiation of disciplinary action, up to and including removal.

_____ _____
SIGNATURE OF EMPLOYEE DATE

Attachment 5

SAMPLE LETTER - EMPLOYEE NOTIFICATION OF DRUG TESTING RESULTING FROM AN ACCIDENT OR SAFETY MISHAP

(APPROPRIATE LETTERHEAD)

(*Date*)

MEMORANDUM FOR (*Employee name)*

FROM: (*Supervisor's Office Symbol)*

SUBJECT: Notice to Report for Accident or Safety Mishap Drug Testing

1. After coordination with a higher level supervisor and an attorney from the Staff Judge Advocate's Office, I have determined that your acts may have caused or contributed to a safety mishap or accident involving (*provide only very general information sufficient to clearly identify the particular incident*).

2. The Air Force is committed to providing a safe and secure working environment and accident or mishap drug testing can provide invaluable information in furtherance of that interest. Therefore, you are hereby directed to report to (*specific location of testing*) at (*specific time*) to provide a urine sample for drug testing purposes. The collection, handling, and testing of the urine specimen may be conducted under chain of custody procedures established by the Health and Human Services (HHS) Technical Guidelines to ensure accuracy of the test result. The quality of testing procedures is tightly controlled to ensure results may be handled with the maximum respect for individual confidentiality.

3. If you refuse to furnish a urine specimen as directed, or if illicit drug use is detected through a Medical Review Officer-verified positive test result, you may be subject to disciplinary action, up to and including removal, depending on the specific circumstances.

[SUPERVISOR'S SIGNATURE BLOCK]

I acknowledge receipt of the letter and have read its contents.

_____ _____

SIGNATURE OF EMPLOYEE DATE

Attachment 6

SAMPLE LETTER- EMPLOYEE NOTIFICATION FOR DRUG TESTING AS A RESULT OF REASONABLE SUSPICION

(APPROPRIATE LETTERHEAD)

(Date)

MEMORANDUM FOR (*Employee Name*)

FROM: (*Supervisor's Office Symbol*)

SUBJECT: Notice to Report for Reasonable Suspicion Drug Testing

1. After coordination with a higher level supervisor and an attorney from the Staff Judge Advocate's Office, I have determined that there is a reasonable suspicion you have used an illicit drug and that the illicit drug is still in your system. You are therefore directed to report to (*specific location of testing*) at (*specific time*) to provide a urine sample for drug testing purposes. The collection, handling, and testing of the urine specimen will be conducted under chain of custody procedures established by the Department of Health and Human Services (HHS) Technical Guidelines to ensure accuracy of the test result. The quality of testing procedures is tightly controlled to ensure results will be handled with the maximum respect for individual confidentiality.

2. If you refuse to furnish a urine specimen as directed, or if illicit drug use is detected through a Medical Review Officer-verified positive test result, you will be subject to disciplinary action, up to and including removal, depending on the specific circumstances.

[SUPERVISOR'S SIGNATURE BLOCK]

I acknowledge receipt of the letter and have read its contents.

_____ _____

SIGNATURE OF EMPLOYEE DATE

Attachment 7

SAMPLE LETTER - EMPLOYEE SELECTION NOTIFICATION FOR TESTING DEPARTMENT OF THE AIR FORCE

(APPROPRIATE LETTERHEAD)

(Test Date)

MEMORANDUM FOR: <Name>, <Social Security Number>, <POOL DESCRIPTION>

FROM: Civilian Drug Demand Reduction (DDR)
Demand Reduction Address
XXXX AFB xxxxx-xxxx

SUBJECT: Report for Random Drug Testing (**Employee must bring this form to the collection site**.)

1. This is to inform you that <Name> has been randomly selected for drug testing. Please direct the employee by endorsement to this letter to report for testing on <Test Date> within two hours of the time they are notified. Hours of testing are (*insert current hours of operation*). Please have the employee bring this signed form to this appointment. You should personally inform the employee of selection, and explain that the selection was purely random and that the employee is under no suspicion of using illegal drugs. Also, inform the employee that there will be an opportunity to submit medical documentation to the Medical Review Officer to support the legitimate use of a specific drug.

2. Please notify the employee on the same day the test is scheduled, preferably within two hours of the scheduled test. Employees who refuse to be tested will be subject to the full range of disciplinary action, up to and including removal. An employee selected for random drug testing may obtain a deferral of testing if the employee's first-level and second-level supervisors concur that a compelling need necessitates a deferral on the grounds that the employee is in a leave status (sick, annual, administrative or leave without pay); in official travel status away from the test site; or about to embark on official travel scheduled prior to testing notification.

3. Employees whose random drug tests are deferred will be subject to an unannounced test within the following 60 days. Please inform this office of any employee deferred from testing. The Point of Contact is DDRPM extension. xxxx.

_____
DDRPM

_____

Signature of DDRPM/DTPAM
1st Ind.,

TO: <Name>

You have been randomly selected for drug testing. You must report to **Drug Demand Reduction** on <Test Date> within two hours of notification for this test. Your signature certifies you have received this notice.

_____ _____ _____
Supervisor Signature Date Time

I acknowledge receipt of this notice to report for random drug testing. I understand that a verified positive drug test or refusal to submit to testing may result in disciplinary or adverse action, up to and including removal.

_____ _____ _____
Employee Signature Date Time

REPORTING TIME _____ _____
Date Time

Collector's Signature _____

TESTING DEFERRAL: This individual has been deferred from testing for the following reason:

_____
And will return to duty mm/dd/yyyy

_____ _____
1st Level Supervisor Signature 2nd Level Supervisor Signature

Attachment 8

SAMPLE LETTER - NOTIFICATION LETTER FOR DRUG TESTING AS A CONDITION OF EMPLOYMENT FOR CURRENT AIR FORCE EMPLOYEES MOVING FROM A NON-TESTING DESIGNATED POSITION TO A TESTING DESIGNATED POSITION

(APPROPRIATE LETTERHEAD)

(*Date*)

MEMORANDUM FOR (*Tentatively Selected Applicant Name - Current Air Force Employee Moving to testing designated position*)

FROM: Civilian Personnel Flight/Human Resource Office

SUBJECT: Notice of Drug Testing as a Condition of Employment

1. The position of (*Title, Series, and grade*) for which you have been tentatively selected is designated by the Air Force as a testing designated position under the Air Force Civilian Drug Demand Reduction (DDR) Program. For the purpose of this program, testing designated positions are those positions sufficiently critical to the Air Force mission or to the protection of public safety to warrant screening to detect the presence of drugs as a job-related requirement. Illicit drug use by employees in sensitive positions present a clear threat to the mission of the Air Force, national security, and public safety.

2. To receive further consideration for this testing designated position, you must sign this notice and agree to submit to urinalysis testing in order to determine your fitness for placement into this testing designated position, prior to the effective date of the action. The drugs included in the routine test panel are marijuana (metabolite), cocaine, amphetamines (amphetamine and methamphetamine), methylenedioxymethamphetamine, methylendioxyamphetamine, opiates (codeine, morphine, and heroin metabolite), synthetic opioids (oxycodone, oxymorphone, hydrocodone, and hydromorphone), and phencyclidine.

3. If you sign this notice and then refuse to furnish a urine specimen, the position offer will be withdrawn. If a laboratory verified positive test result is received, you will be given an opportunity to submit medical documentation to the Medical Review Officer to support the legitimate use of prescription drugs. If illicit drug use is Medical Review Officer-verified through the test result, the position offer will be withdrawn and, as a current Air Force employee, you will be subject to disciplinary action.

4. If you are placed into this testing designated position, the following employment requirements apply:

(a) It will continue to be mandatory for you to refrain from the use of illicit drugs, and you will continue to be subject to testing under the following circumstances: 1) when there is a reasonable suspicion that you use illicit drugs, 2) as part of a safety/mishap

investigation, or 3) as part of or follow-up to counseling or treatment for illicit drug use.

(b) You will be subject to urinalysis testing on an unannounced random basis.

(c) If you refuse to furnish a urine specimen, or if you provide a urine specimen that ultimately reflects the use of an illicit drug, you may be removed from Federal Service.

(d) If illicit drug use is detected through a Medical Review Officer-verified positive test result, you may be disciplined, ranging from reprimand to removal from Federal Service. Additionally, you are subject to assignment to a non-testing designated position. Management will propose action to remove you from Federal Service if you fail to agree to participate in a counseling or treatment program. However, even if you agree to participate in and subsequently complete a counseling or treatment program, you may still be subject to disciplinary action, up to an including removal, based on the totality of the circumstances of your situation. Your agreement to participate in a counseling or treatment program will be one of the factors considered in determining the level of discipline or disciplinary action imposed.

5. If you believe you may have a drug problem, you are encouraged to voluntarily seek assistance by contacting the Employee Assistance Program (EAP) at (*provide phone number*) or, if an EAP is not locally available, the Alcohol and Drug Abuse Prevention and Treatment program office (provide phone number and modify as necessary for local situations).

[SIGNATURE BLOCK]
AUTHORIZED CIVILIAN PERSONNEL FLIGHT SPECIALIST

I acknowledge receipt of the letter and have read its contents. I understand that I may be selected for random drug testing. I understand that I will be subject to drug testing when there is reasonable suspicion to believe that I am under the influence of drugs or as a result of a safety mishap. I also understand that refusal to submit to testing will result in initiation of disciplinary action, up to and including removal.

_____ _____

SIGNATURE OF EMPLOYEE DATE

Attachment 9

SAMPLE BRIEFING FOR URINE SPECIMEN COLLECTION OBSERVERS

ALL OBSERVERS WILL READ prior to observing the collection of urine specimens under chain-of-custody.

Collection of forensic urine specimens for drug testing requires maintenance of a strict chain of custody from the time chain of custody is initiated to shipping of the sealed urine specimen container to the Forensic Drug Testing Laboratory.

Observers' qualifications:

1. Observers may not serve as an observer on the same day they are selected for testing

2. Observers may not have adverse administrative or judicial history involving dishonesty, fraud or drug-related misconduct

3. Observers may not have an active Unfavorable Information File

4. Observers may not have prior convictions by court-martial or civilian court

5. Observers may not be presently facing criminal charges in any court, aside from offenses wherein the defendant does not have the right to trial by jury (for example, most speeding and parking tickets)

6. Observers may not be facing pending adverse administrative action

7. Observers may not be within six months of either separation or retirement from Government Service

9. Observers may not have medical condition(s) that will prevent them from performing their duties as observers

Duties:

1. If the observer at any time observes behavior suggesting the employee is attempting to avoid testing or tamper with the specimen bottle, the/observer will immediately notify the DDRPM/DTPAM.

2. The observer escorts employee to the rest room. The employee will maintain custody of the collection cup making sure collection cup remains in the sight of the OBSERVER at all times.

3. Instruct the employee to wash his/her hands (with water only) and dry them before they provide the urine specimen.

4. During the collection process the observer ensures that the employee provides urine into the collection cup.

5. The observer must be allowed to observe the employee carry the collection cup to collection site (Drug Demand Reduction Program) staff for reading temperature.

6. The observer must never touch or handle collection container unless the collector is serving as observer. After the employee has completed urinating into the collection container, the employee and the observer leave the rest room. The employee hands the collection container directly to the collector. The observer must maintain visual contact of the collection container until the employee hands the container to the collector.

7. The employee must allow the observer to observe the urine specimen being poured by Drug Demand Reduction Program from the collection cup into the specimen bottle, to observe Drug Demand Reduction Program staff tightly cap the bottle, apply the bottle security seal with date and employee's initials.

8. The observer will remain with the employee until a urine specimen has been accepted by collection site (Drug Demand Reduction (DDR) Program) staff. If the employee is unable to give a specimen immediately, the escort must accompany the individual to get water, coffee, etc., as instructed by collection site (DDR Program) staff, until the specimen is provided.

9. The escort and the employee will be released to return to their duty section once the specimen collection procedure is completed.

10. The Civilian DDR Program is a mandatory Air Force Program. Collection site personnel (DDR Program staff) are merely carrying out Air Force directives. Abusive, abrasive or rude behavior will not be tolerated and any occurrence will be reported to the employee's, applicant's or escort's supervisor and commander/director.

11. Any questions concerning these instructions should be directed to DDR Program staff.

I certify that I have read and fully understand my duties and responsibilities and am fully qualified to perform escort duties, as specified above. I also certify that I have been verbally briefed, viewed a physical demonstration of the process for correctly collecting a urine specimen, and been afforded ample opportunity to question the process to assure my full understanding of my duties.

PLEASE PRINT. YOUR NAME MUST BE LEGIBLE FOR POSSIBLE USE IN COURT PROCEEDINGS.

CAUTION!! Should you observe the employee passing urine over the hands or fingers, attempting to block direct observation, or attempting to tamper with the bottle, allow the collection to be completed and **report this suspicious behavior to the collector upon return to the collection table.**

_____	_____	_____	_____
PRINT NAME	Rank/Grade	Unit	Date

_____	_____
SIGNATURE	Initials

Attachment 10

SAMPLE ESCORT INSTRUCTIONS

(APPROPRIATE LETTERHEAD)

1. The employee is required to go directly to the test site, with no opportunity to circumvent or adulterate the test, and shall not void his or her bladder prior to reaching the collection site.

2. The escort will inform the employee that the urine specimen collection procedure must be completed promptly, as the temperature of the specimen must be read by the collector within **Four (4) MINUTES** of the sample being provided. If the temperature is not read within 4 minutes the employee/applicant may be required to provide a new specimen under direct observation.

3. An escort stands in area of void site, affording the employee privacy while providing the urine specimen.

4. The escort must be allowed to observe the employee carry the collection cup to collection site (Drug Demand Reduction (DDR) Program) staff for reading temperature.

5. The employee must allow the escort to observe the urine specimen being poured by DDR Program from the collection cup into the specimen bottle, to observe DDR Program staff tightly cap the bottle, apply the bottle security seal with date and employee's initials and prepare specimen for shipment.

6. If the escort at any time observes behavior suggesting the employee is attempting to avoid testing or tamper with the specimen bottle, the escort will immediately notify the collection site supervisor (DDRPM/DTPAM).

7. The escort will remain with the employee until a urine specimen has been accepted by collection site (DDR Program) staff. If the employee is unable to give a specimen immediately, the escort must accompany the individual to get water, coffee, etc., as instructed by collection site (DDR Program) staff, until the specimen is provided.

8. The escort and the employee/applicant will be released to return to their duty section once the specimen collection procedure is completed.

9. The Civilian DDR Program is a mandatory Air Force Program. Collection site personnel (DDR Program staff) are merely carrying out Air Force directives. Abusive, abrasive or rude behavior will not be tolerated and any occurrence will be reported to the employee's, applicant's or escort's supervisor and commander/director.

Any questions concerning these instructions should be directed to DDR Program staff.

I certify that I have read and fully understand my duties and responsibilities and am fully qualified to perform escort duties, as specified above. I also certify that I have been verbally briefed, viewed a physical demonstration of the process for correctly collecting a urine specimen, and been afforded ample opportunity to question the process to assure my full understanding of my duties.

PLEASE PRINT. YOUR NAME MUST BE LEGIBLE FOR POSSIBLE USE IN COURT PROCEEDINGS.

_____	_____	_____
PRINT NAME	Rank/Grade	Unit

_____	_____
SIGNATURE	DATE

Attachment 11

SAMPLE RELEASE OF PATIENT INFORMATION MEMORANDUM

(APPROPRIATE LETTERHEAD)

(*Date)*

MEMORANDUM FOR (*Name or title of the person or organization to which the disclosure is to be made*)

FROM: (*Organization or individual making the disclosure*)

SUBJECT: Release of Patient Information

1. According to the attached "Consent for Release of Patient Information During or After Treatment or Rehabilitation," I have released information to you regarding (*Patient's name*).

2. This information has been disclosed to you from confidential records protected by Federal law. See 42 United States Code. 290dd-2. Federal regulations, at 42 Code of Federal Regulations Part 2, prohibits any further disclosure of this information without the specific written consent of the person to whom it pertains, or as otherwise permitted by those regulations. A general authorization for the release of medical or other information is NOT sufficient for this purpose.

[SIGNATURE BLOCK]

Attachment:
Consent for Release of Patient Information During or After Treatment or Rehabilitation

Attachment 12

SAMPLE AUTHORIZATION FOR RELEASE OF PATIENT INFORMATION DURING OR AFTER TREATMENT OR REHABILITATION

I, (Employee/Patient Name) , hereby give authorization to the disclosure of information concerning my progress in treatment. I authorize the (Treatment/Rehabilitation Program) to disclose that clinical and medical information to the following individuals:

The Alcohol and Drug Abuse Prevention and Treatment Program Manager (ADAPT)/Employee Assistance Program (EAP) Counselor, (Name and Location) .

I authorize disclosure of information about my participation in treatment/rehabilitation to my supervisor (Name) , and the Human Resource Office representative (Name) for monitoring under Executive Order 12564, which sets forth the objective of achieving a drug-free Federal workplace.

I understand that this authorization is subject to revocation at any time, except to the extent that action has been taken in reliance thereon, and that it will expire without express revocation upon (date, event, and condition) .

This authorization to disclose the above described treatment records for the purpose set out above was voluntary and not subject to coercion.

_____
(Signature of Employee/Patient)

_____
(Date on which authorization is signed)

CLAUSE FOR USE IF EMPLOYEE IS A MINOR OR LEGALLY INCOMPETENT

I, (name) , the (parent/legal guardian or personal legal representative) of the above named employee/patient, hereby provide authorization to the aforementioned release of information on his/her behalf.

_____ _____
Signature of parent/legal guardian or personal legal representative) Date

Attachment 13

SAMPLE LETTER – INITIAL SUBSTANCE ABUSE ASSESSMENT APPOINTMENT LETTER

(APPROPRIATE LETTERHEAD)

(*Date)*

MEMORANDUM FOR *(Employee's Name)*

FROM: *(Supervisor's Office Symbol)*

SUBJECT: Appointment for Initial Substance Abuse Assessment

1. As a result of your alcohol related misconduct and/or Medical Review Officer-verified positive test for drug use, you must report to *(Location),* Building Number, on *(Date)*, at *(Time),* (AM/PM), for your initial substance abuse assessment. If this appointment is provided through your Air Force Alcohol and Drug Abuse Prevention and Treatment clinic, there is no charge for this assessment. You will be allowed reasonable duty time for travel to and from and attendance at the initial assessment session. You will be provided information on opportunities for substance abuse counseling and referral services available to assist in your rehabilitation efforts.

2. Failure to report for this appointment may result in disciplinary action. The attached form letter should be completed by the assessment counselor and provided to me upon your return to the office. Reporting for this assessment will not preclude my initiation of disciplinary action for your illicit drug usage. However, your efforts at rehabilitation will be considered as a factor in determining the severity of any disciplinary action.

3. While this is a mandatory appointment, I encourage you to take full advantage of this opportunity. If I can be of any assistance to you, please let me know.

[SUPERVISOR SIGNATURE BLOCK]

Attachment:
Confirmation of Attendance

Attachment 14

SAMPLE LETTER - INITIAL SUBSTANCE ABUSE ASSESSMENT APPOINTMENT LETTER FOR SUPERVISOR

(APPROPRIATE LETTERHEAD)

(Date)

MEMORANDUM FOR *(Office Symbol/Supervisor's Name)*

FROM: *(Office Symbol/Alcohol and Drug Abuse Prevention and Treatment Program or Employee Assistance Program)*

SUBJECT: Initial Assessment Appointment for *(Employee's Name)*

1. On *(Date)* your employee, *(Name),* was scheduled for an initial evaluation. The following information is provided:

a. The employee did/did not report.

b. The employee did/did not sign a release form.

2. He/she was provided information on counseling and rehabilitation services available. He/she was advised that in accordance with Executive Order 12564, refusal to obtain these services may result in the employee's removal from Federal Service.

[SIGNATURE BLOCK]
(Signed by appropriate medical personnel)

Attachment 15

SAMPLE CONSENT TO PROVIDE URINE SPECIMEN FOR DRUG TESTING

NOTE: DO NOT USE FOR RANDOM, REASONABLE SUSPICION OR SAFETY/MISHAP TESTING

I _____ state that _____identified himself/herself to me as a _____ and advised me that I have the legal right to either consent to provide a urine specimen pursuant to the Air Force Civilian Drug Demand Reduction (DDR) Program or to refuse to give my consent to provide such a specimen for testing.

I understand I understand that if I consent to provide a urine specimen for drug testing, that any illicit drug found in the specimen as a result of drug testing may not be used in a criminal action against me, but may be used as the basis to support disciplinary/adverse and/or administrative action against me.

With knowledge of the foregoing, I have carefully considered this matter and elected to consent to provide a urine specimen for drug testing under the Air Force Civilian DDR Program. I am giving my consent voluntarily and of my own free will, without having been subjected to coercion, unlawful influence or unlawful inducement, and without any promise of reward, benefit or immunity. The individuals collecting my urine specimen have my permission to have my urine specimen tested as they determine appropriate for the presence of any drug. I have read and understand this entire acknowledgement of my rights, and grant my consent for the search and seizure of my bodily fluids.

Dated on this _____day of _____ at _____.

_____
Signature of Civilian Employee Providing Consent

_____
Signature of Witness (Printed Name of Witness)

_____
Signature of Witness (Printed Name of Witness)

Attachment 16

SAMPLE LETTER - NOTICE OF DRUG TESTING AS A CONDITION OF EMPLOYMENT FOR INDIVIDUALS NEWLY ASSIGNED TO A TESTING DESIGNATED POSITIN

(APPROPRIATE LETTERHED)

(*Date*)

MEMORANDUM FOR (*Employee Name - Incumbent of position newly designated as a testing designated position*)

FROM: Civilian Personnel Flight

SUBJECT: Notice of Drug Testing as a Condition of Employment

1. The position of (*Title, Series, and grade*) to which you are assigned has been designated by the Air Force as a testing designated position under the Air Force Civilian Drug Demand Reduction (DDR) Program. For the purpose of this program, testing designated positions are those positions sufficiently critical to the Air Force mission or to the protection of public safety to warrant screening of the incumbent employee to detect the presence of drugs as a job-related requirement. Illicit drug use by employees in sensitive positions presents a clear threat to the mission of the Air Force, national security, or public safety.

2. As a mandatory requirement for your continued employment in this testing designated position, it is required you (a) refrain from the use of illicit drugs and (b) submit to urinalysis testing pursuant to Air Force Manual 44-198, *Air Force Civilian Drug Demand Reduction and Substance Abuse Program*. You are directed to read and become familiar with Air Force Manual 44-198. Therefore, 30 days after receipt of this notice, you will be subject to urinalysis testing on an unannounced random basis.

3. You will receive specific instructions concerning when and where the test will be conducted immediately prior to the test. You will be allowed individual privacy while providing the urine specimen unless there is reason to believe the specimen may be or has been altered. The collection, handling, and testing of the urine specimen will be conducted under chain of custody procedures established by the Health and Human Services Technical Guidelines to ensure accuracy of the test result. The quality of testing procedures is tightly controlled to ensure results will be handled with the maximum respect for individual confidentiality.

4. If you refuse to furnish a urine specimen as directed, or if illicit drug use is detected through a Medical Review Officer-verified positive test result, you will have failed to meet the mandatory employment requirement for this sensitive position. If you refuse to furnish a urine specimen, or, if you provide a urine specimen that ultimately reflects the use of an illicit drug you will be subject to disciplinary action, up to an including removal. However, even if you agree to participate in and subsequently complete a counseling or treatment program, you may still be

subject to disciplinary action, up to and including removal, depending on the totality of the circumstances of your situation. Your agreement to participate in a counseling or treatment program will be one of the factors considered in determining the level of discipline or disciplinary action imposed. Prescription drugs authorized by a physician and verified by appropriate evidence are excluded from such determinations. You will be given an opportunity to submit medical documentation to the Medical Review Officer in order to verify the legitimate use of specific drugs before any action will be taken. Absent valid medical documentation, you may be removed from the Federal Service.

5. If you believe you may have a drug problem, you are encouraged to voluntarily seek counseling or referral services by contacting the Employee Assistance Program (EAP) at (*provide phone number*) or, if an EAP is not locally available, the Alcohol and Drug Abuse Prevention and Treatment (ADAPT) program office at (*provide phone number and modify as necessary for local situations*). If you do self-identify and agree to provisions described in the civilian drug testing program during this 30-day notice period, you will not be subject to disciplinary action for past use.

[SIGNATURE BLOCK]
AUTHORIZED CIVILIAN PERSONNEL FLIGHT SPECIALIST

I acknowledge receipt of the letter and have read its contents. I understand that I may be selected for random drug testing. I understand that I will be subject to drug testing when there is reasonable suspicion to believe that I am under the influence of drugs or as a result of a safety mishap. I also understand that refusal to submit to testing will result in initiation of disciplinary action, up to and including removal.

_____
SIGNATURE OF EMPLOYEE

Attachment 17

SAMPLE SUPERVISOR INSTRUCTIONS

1. To ensure the civilian drug testing procedure is accomplished as smoothly and as quickly as possible and to prevent the testing designated employee from having an opportunity to delay, circumvent or adulterate the urine collection process, **THE SUPERVISOR MUST ENSURE THE FOLLOWING:**

a. Ensure the employee is fully aware that once he or she arrive at the collection site, THEY MAY NOT LEAVE UNTIL THE COLLECTION PROCEDURE IS COMPLETED.

b. Ensure the employee is aware that he/she must have a PHOTO ID, for example, Civilian ID Card or Driver's License in his or her possession when they arrive at the collection site.

c. Ensure the employee has been briefed that the Civilian Drug Demand Reduction (DDR) Program is an Air Force-directed program and an UNCOOPERATIVE OR ABRASIVE ATTITUDE will be reported by the DDR Program staff through the DDRPM to the employee's supervisor and commander/director.

d. Ensure the employee is aware that he/she should report to the collection site with a **full bladder** and be READY TO PROVIDE A URINE SPECIMEN in order to expedite the urine collection process. If the employee has recently voided, they should drink fluids prior to reporting to the collection site.

A COPY OF THE NOTICE TO REPORT FOR RANDOM DRUG TESTING, SIGNED BY BOTH THE SUPERVISOR AND THE EMPLOYEE, MUST BE PROVIDED TO DDR PROGRAM STAFF UPON ARRIVAL AT THE COLLECTION SITE. The original is filed in the Supervisor's Record of Employee (971) as proof the employee was directed for testing by the supervisor.

2. Should the employee refuse to cooperate with the drug testing program, immediately notify your supervisor and your Employee/Management Relations Specialist.

3. Any questions may be directed to the DDRPM/DTPAM at [phone number].

Attachment 18

SAMPLE LAST CHANCE AGREEMENT

EMPLOYEE NAME

1. This is a LAST CHANCE AGREEMENT between (*installation)* management and (*employee name*) on (*date*), (*employee name*) was issued a Notice of Proposed Removal for the offense of (*specify offense(s)*).

2. (*Employee name*) has expressed a desire to enter into a Last Chance Agreement rather than be removed. The purpose of this Agreement is to provide (*employee name*) with an alternative to removal from Federal employment. By offering this Agreement, (*installation*) management recognizes that (*employee name*) presently retains the potential to be a productive employee.

3. (*Employee name*) must clearly understand that this agreement requires strict adherence by (*employee name*). Any violation of the terms listed below shall result in *(employee name)* immediate removal from federal employment. (*employee name*) understands that one instance of illicit drug use, a single positive drug test or any other non-compliance with this agreement can be just cause for removal. (*Employee name*) clearly understands and fully agrees with the terms of this agreement. All terms of this agreement are made of (*employee name*) free will and all appeal rights set forth below are waived knowingly and voluntarily. [*EMPLOYEE NAME*] also states that this agreement is written in a manner calculated to be understood, is supported by consideration and that (*employee name*) was given the opportunity to consult private counsel and to seek independent legal advice before signing this agreement.

a. (*Employee name*) will enter a (*XX)*– month probationary period starting from the date this Agreement is signed. The parties agree that for this (*XX)* month period, (*employee name*) removal from federal employment will be (held in abeyance) or (reduced to a *new penalty*) (If a suspension, state the following: (1) number of days; (2) beginning date; (3) end date; (4) date employee will return to duty; (5) pay status; (6) work status; and (7) descriptive language which will be used in the Standard Form 52 implementing the suspension)

b. In return for management's agreement not to execute (*employee name)* removal for the next (*XX)* months, (*employee name)* agrees to the following: (*employee name)* has agreed to enroll in rehabilitation and treatment program designated by management and must fulfill all requirements for successful completion of that program. This rehabilitation and treatment program helps people learn skills to remain free of substance abuse and will, in most cases, include a period of aftercare. (*employee name)* will be subject to periodic, unannounced Air Force drug testing during and following completion of such a program for the (*XX)*-month probationary period described in this Agreement unless sooner curtailed by management. (*employee name)* will be immediately removed from Federal service if he or she fails to complete the rehabilitation and treatment program in which he or she is enrolled, fails to provide progress reports, or refuses to be tested. During the (*XX)*-month probationary period, (*employee name)* will refrain from further illicit drug use.

c. By entering into this Agreement, (*employee name)* waives the following as regards to any disciplinary/adverse or administrative action, up to and including removal, brought against (*employee name)* for any of the reasons identified in paragraph 3.b., above:

(1) All appeal rights to the Merit Systems Protection Board;
(2) All Equal Employment Opportunity complaint procedures, including, but not limited to, Title VII of the Civil Rights Act of 1964, which prohibits employment discrimination based on race, color, national origin, religion, or sex; the Rehabilitation Act, which prohibits employment discrimination based on disability; the Age Discrimination in Employment Act and the Older Workers Benefit Protection Act; and any other federal, state, or local laws or regulations prohibiting employment discrimination;
(3) All rights to participate in Grievance-Arbitration procedures;
(4) All rights to participate in Master Labor Agreement procedures; and
(5) Any other avenue of complaints and/or redress, including but not limited to, Inspector General complaints, Office of Special Counsel complaints, and the Federal court system.

d. (*Employee name)* agrees that all facts of this settlement and all terms contained herein, including the outcome, will be kept confidential. (*Employee name)* agrees not to discuss or disclose the facts of this settlement with Federal employees other than (*his or her)* representative. The terms of this settlement agreement will not establish any precedent, nor will the agreement be used as a basis by (*employee name)* or any representative to seek or justify similar terms in any subsequent case.

e. By signing this Agreement, [Employee Name] waives all privacy rights he may possess under both the *Privacy Act* and the *Health Insurance Portability & Accountability Act*. Further, by signing this Agreement and waiving those privacy protections, [Employee Name] specifically authorizes the rehabilitation and treatment program [Employee Name] is enrolled in under this Agreement to provide and to release to the Agency upon request any and all information or documents in its possession of any kind pertaining to my participation or lack of participation in and my progress or lack of progress in meeting the requirements of that rehabilitation and treatment program.

4. This Agreement gives (*employee name)* a last chance opportunity to demonstrate that he can be a dependable, productive employee. Should he not satisfactorily complete the probationary period or violate any part of this Agreement, management may elect to immediately remove him from Federal employment and (*employee name)* hereby waives all appeal rights, as set forth in paragraph 3.c. above, as regards that removal action (unless management institutes a criminal action, then the employee does not waive any rights to defend him/herself in any court). If (*installation name*) management fails to abide by the agreement that (*employee name*) has honored, then the employee is entitled to exercise appeal rights, per his/her options.

5. This Agreement is based on the facts and circumstances with respect to (*employee name)* current drug-abuse-related disciplinary action. This Agreement and its terms and provisions constitute the complete understanding between the parties. No other promises or agreements

will be binding unless in writing and signed by all parties. This agreement may be used as evidence in a later proceeding in which either of the parties alleges a breach of the agreement.

6. (*Employee name)* waives any rights to attorney fees. The agency, therefore, is not liable for any costs or attorney fees incurred by (*employee name)* as regards this agreement or any past or future disciplinary action. (*Employee name)* agrees that his attorneys, and any prior representative, are not entitled to fees or costs from the agency.

For Management

_____ _____
Supervisor Signature Date

For the Employee

(*EMPLOYEE NAME)* ACKNOWLEDGES THAT HE/SHE HAS READ THE ENTIRE AGREEMENT, UNDERSTANDS IT, AND IS VOLUNTARILY ENTERING INTO IT.

I understand I have the right to consult with a Union representative and/or my own private attorney prior to entering into this Agreement.

_____ _____
Employee Initials Date

To indicate your acceptance of this Agreement, read and sign the following statement.

I clearly understand the last chance opportunity offer as stated in the Agreement above and I fully and explicitly agree with its terms and provisions. I know and understand I have various appeal rights with respect to the removal action proposed against me prior to execution of this Agreement, but willingly and knowingly choose to waive those rights in order to enter into this Agreement with Management. By this Agreement signed on this date, I, (*employee name)*, of my own free will, waive my rights as described above.

_____ _____
Employee Signature Date

_____ _____
Employee Representative Date